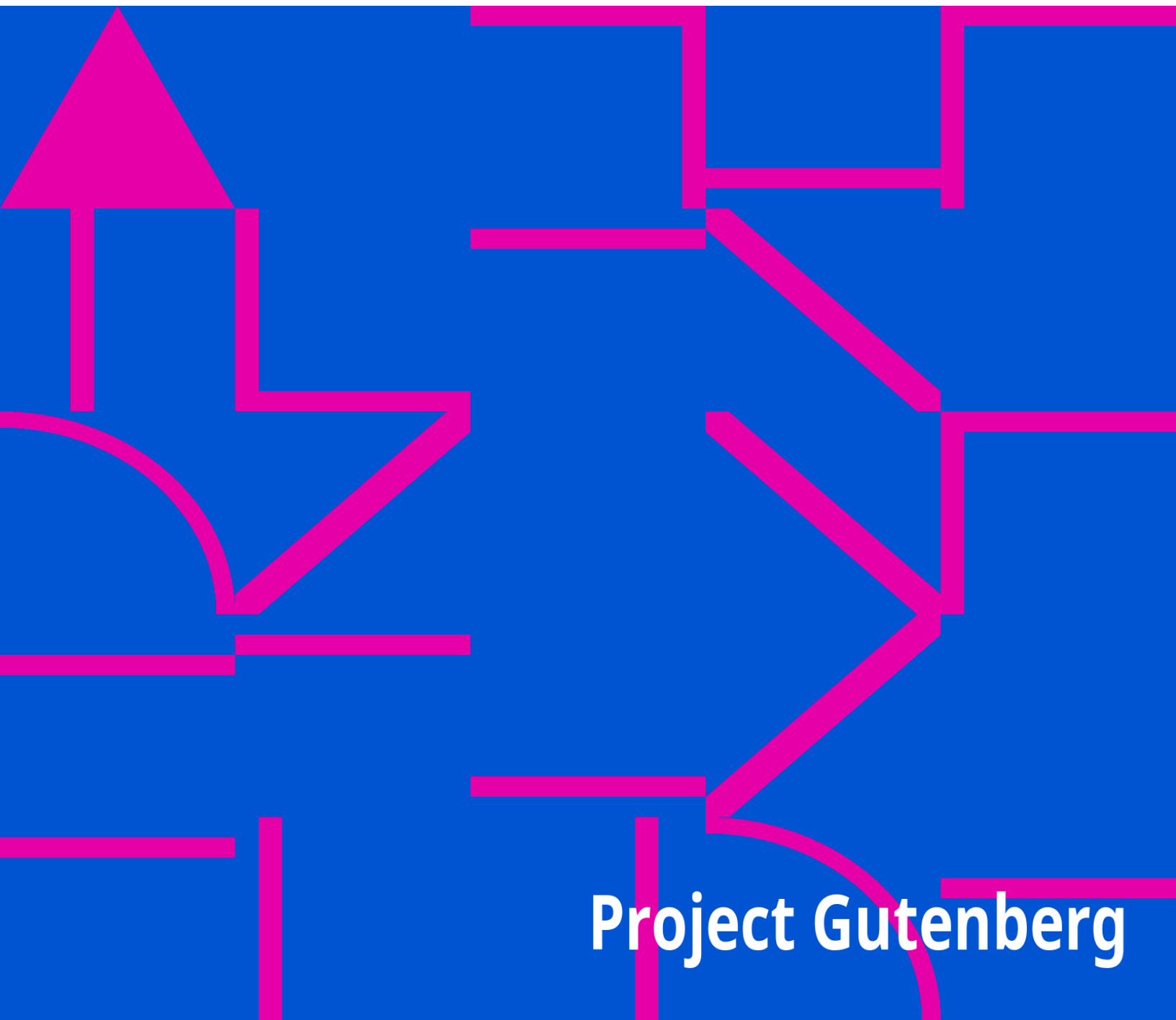


A Problem in Modern Ethics

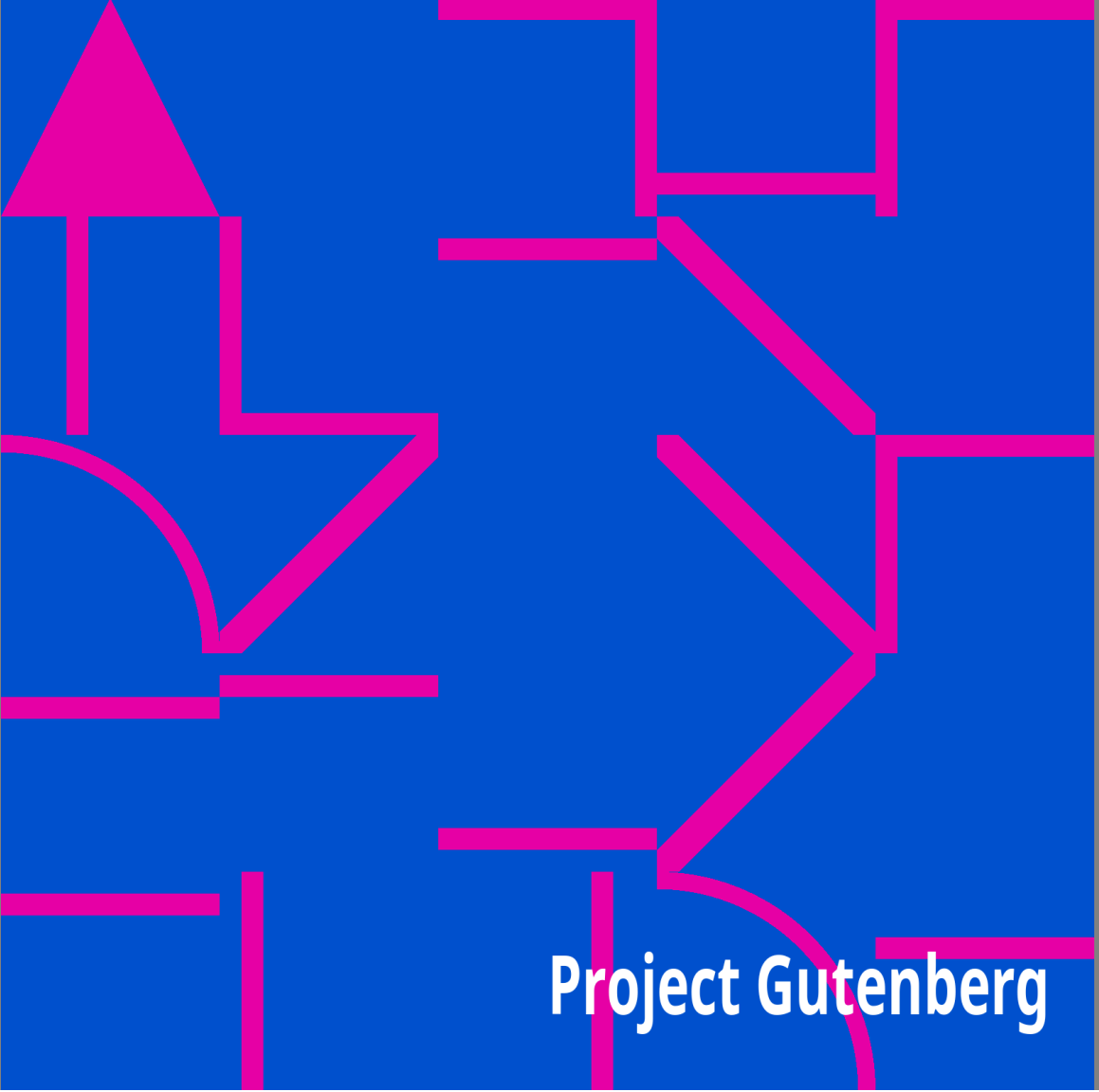
John Addington Symonds

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A Problem in Modern Ethics

John Addington Symonds



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A PROBLEM IN MODERN ETHICS

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A

PROBLEM IN MODERN ETHICS

BEING

***AN INQUIRY INTO THE PHENOMENON
OF SEXUAL INVERSION***

**ADDRESSED ESPECIALLY TO MEDICAL PSYCHOLOGISTS
AND JURISTS**

BY

JOHN ADDINGTON SYMONDS

LONDON
1896

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INTRODUCTION.

THERE is a passion, or a perversion of appetite, which, like all human passions, has played a considerable part in the world's history for good or evil; but which has hardly yet received the philosophical attention and the scientific investigation it deserves. The reason of this may be that in all Christian societies the passion under consideration has been condemned to pariahdom; consequently, philosophy and science have not deigned to make it the subject of special enquiry. Only one great race in past ages, the Greek race, to whom we owe the inheritance of our ideas, succeeded in raising it to the level of chivalrous enthusiasm. Nevertheless, we find it present everywhere and in all periods of history. We cannot take up the religious books, the legal codes, the annals, the descriptions of the manners of any nation, whether large or small, powerful or feeble, civilised or savage, without meeting with this passion in one form or other. Sometimes it assumes the calm and dignified attitude of conscious merit, as in Sparta, Athens, Thebes. Sometimes it skulks in holes and corners, hiding an abashed head and shrinking from the light of day, as in the capitals of modern Europe. It confronts us on the steppes of Asia, where hordes of nomads drink the milk of mares; in the bivouac of Keltish warriors, lying wrapped in wolves' skins round their camp-fires; upon the sands of Arabia, where the Bedaween raise desert dust in flying squadrons. We discern it

among the palm-groves of the South Sea Islands, in the card-houses and temple-gardens of Japan, under Esquimaux snow-huts, beneath the sultry vegetation of Peru, beside the streams of Shiraz and the waters of the Ganges, in the cold clear air of Scandinavian winters. It throbs in our huge cities. The pulse of it can be felt in London, Paris, Berlin, Vienna, no less than in Constantinople, Naples, Teheran, and Moscow. It finds a home in Alpine valleys, Albanian ravines, Californian canyons, and gorges of Caucasian mountains. It once sat, clothed in Imperial purple, on the throne of the Roman Caesars, crowned with the tiara on the chair of St. Peter. It has flaunted, emblazoned with the heraldries of France and England, in coronation ceremonies at Rheims and Westminster. The royal palaces of Madrid and Aranjuez tell their tales of it. So do the ruined courtyards of Granada and the castle-keep of Avignon. It shone with clear radiance in the gymnasium of Hellas, and nerved the dying heroes of Greek freedom for their last forlorn hope upon the plains of Chæronea. Endowed with inextinguishable life, in spite of all that has been done to suppress it, this passion survives at large in modern states and towns, penetrates society, makes itself felt in every quarter of the globe where men are brought into communion with men.

Yet no one dares to speak of it; or if they do, they bate their breath, and preface their remarks with maledictions.

Those who read these lines will hardly doubt what passion it is that I am hinting at. *Quod semper ubique et ab omnibus*—surely it deserves a name. Yet I can hardly find a name which will not seem to soil this paper. The accomplished languages of Europe in the nineteenth century supply no term for this persistent feature of human psychology, without importing some implication of disgust, disgrace, vituperation. Science, however, has recently—within the last twenty years in fact—invented a convenient phrase, which does not prejudice the matter under consideration. She speaks of the "inverted sexual instinct"; and with this neutral nomenclature the investigator has good reason to be satisfied.

Inverted sexuality, the sexual instinct diverted from its normal channel, directed (in the case of males) to males, forms the topic of the following discourse. The study will be confined to modern times, and to those nations which regard the phenomenon with religious detestation. This renders the

enquiry peculiarly difficult, and exposes the enquirer, unless he be a professed expert in diseases of the mind and nervous centres, to almost certain misconstruction. Still, there is no valid reason why the task of statement and analysis should not be undertaken. Indeed, one might rather wonder why candid and curious observers of humanity have not attempted to fathom a problem which faces them at every turn in their historical researches and in daily life. Doubtless their neglect is due to natural or acquired repugnance, to feelings of disgust and hatred, derived from immemorial tradition, and destructive of the sympathies which animate a really zealous pioneer. Nevertheless, what is human is alien to no human being. What the law punishes, but what, in spite of law, persists and energises, ought to arrest attention. We are all of us responsible to some extent for the maintenance and enforcement of our laws. We are all of us, as evolutionary science surely teaches, interested in the facts of anthropology, however repellant some of these may be to our own feelings. We cannot evade the conditions of *atavism* and *heredity*. Every family runs the risk of producing a boy or a girl whose life will be embittered by inverted sexuality, but who in all other respects will be no worse or better than the normal members of the home. Surely, then, it is our duty and our interest to learn what we can about its nature, and to arrive through comprehension at some rational method of dealing with it.

I.

CHRISTIAN OPINION.

SINCE this enquiry is limited to actual conditions of contemporary life, we need not discuss the various ways in which the phenomenon of sexual inversion has been practically treated by races with whose habits and religions we have no affinity.

On the other hand, it is of the highest importance to obtain a correct conception of the steps whereby the Christian nations, separating themselves from ancient paganism, introduced a new and stringent morality

into their opinion on this topic, and enforced their ethical views by legal prohibitions of a very formidable kind.

Without prejudging or prejudicing this new morality, now almost universally regarded as a great advance upon the ethics of the earlier pagan world, we must observe that it arose when science was non-existent, when the study of humanity had not emerged from the cradle, and when theology was in the ascendant. We have therefore to expect from it no delicate distinctions, no anthropological investigations, no psychological analysis, and no spirit of toleration. It simply decreed that what had hitherto been viewed as immorality at worst should henceforth be classed among crimes against God, nature, humanity, the state.

Opening the Bible, we find severe penalties attached to sexual inversion by the Mosaic law, in the interests of population and in harmony with the Jewish theory of abominations. The lesson is driven home by the legend of two cities, Sodom and Gomorrah, overwhelmed with fire because of their addiction to abnormal sexual indulgences. Here the *vindices flammæ* of the Roman code appear for the first time—the stake and the flames, which mediæval legislation appointed for offenders of this sort.

St. Paul, penetrated with Hebrew ethics, denounced the corruption of the Gentiles in these words: "For this cause God gave them up into vile affections: for even their women did change the natural use into that which is against nature: and likewise also the men, leaving the natural use of the woman, burned in their lust one toward another; men with men working that which is unseemly, and receiving in themselves that recompence of their error which was meet."

Christ uttered no opinion upon what we now call sexual inversion. Neither light nor leading comes from Him, except such as may be indirectly derived from his treatment of the woman taken in adultery.

When the Empire adopted Christianity, it had therefore the traditions of the Mosaic law and the first chapter of the Epistle to the Romans to guide its legislators on this topic. The Emperors felt obscurely that the main pulses of human energy were slackening; population all tended to dwindle; the territory of the empire shrank slowly year by year before their eyes. As the depositaries of a higher religion and a nobler morality, they felt it their duty

to stamp out pagan customs, and to unfurl the banner of social purity. The corruption of the Roman cities had become abominable. The laziness and cowardice of Roman citizens threatened the commonwealth with ruin. To repress sexual appetites was not the ruler's object. It was only too apparent that these natural desires no longer prompted the people to sufficient procreation or fertility. The brood begotten upon Roman soil was inadequate to cope with the intruding tide of barbarians. Wisdom lay in attempting to rehabilitate marriage, the family domestic life. Meanwhile a certain vice ran riot through society, a vice for which Jehovah had rained fire and brimstone upon Sodom, a vice which the Mosaic code punished with death, a vice threatened by St. Paul with "that recompence of their error which was meet."

Justinian, in 538 A.D., seems to have been terrified by famines, earthquakes and pestilences. He saw, or professed to see, in these visitations the avenging hand of Jehovah, the "recompence which was meet" mysteriously prophesied by St. Paul. Thereupon he fulminated his edict against unnatural sinners, whereby they were condemned to torments and the supreme penalty of death. The preamble to his famous Novella 77 sets forth the principles on which it has been framed: "Lest as the result of these impious acts whole cities should perish together with their inhabitants; for we are taught by Holy Scripture, to wit that through these acts cities have perished with the men in them.... It is on account of such crimes that famines and earthquakes take place, and also pestilences."

Before Justinian, both Constantine and Theodosius passed laws against sexual inversion, committing the offenders to "avenging flames." But these statutes were not rigidly enforced, and modern opinion on the subject may be said to flow from Justinian's legislation. Opinion, in matters of custom and manners, always follows law. Though Imperial edicts could not eradicate a passion which is inherent in human nature, they had the effect of stereotyping extreme punishments in all the codes of Christian nations, and of creating a permanent social antipathy.

II.

VULGAR ERRORS.

GIBBON'S remarks upon the legislation of Constantine, Theodosius, and Justinian supply a fair example of the way in which men of learning and open mind have hitherto regarded what, after all, is a phenomenon worthy of cold and calm consideration. "I touch," he says, "with reluctance, and despatch with impatience, a more odious vice, of which modesty rejects the name, and nature abominates the idea." After briefly alluding to the morals of Etruria, Greece, and Rome, he proceeds to the enactments of Constantine: "Adultery was first declared to be a capital offence ... the same penalties were inflicted on the passive and active guilt of pæderasty; and all criminals, of free or servile condition, were either drowned, or beheaded, or cast alive into the avenging flames."^[1] Then, without further comment, he observes: "The adulterers were spared by the common sympathy of mankind; but the lovers of their own sex were pursued by general and pious indignation." "Justinian relaxed the punishment at least of female infidelity: the guilty spouse was only condemned to solitude and penance, and at the end of two years she might be recalled to the arms of a forgiving husband. But the same Emperor declared himself the implacable enemy of unmanly lust, and the cruelty of his persecution can scarcely be excused by the purity of his motives. In defiance of every principle of justice he stretched to past as well as future offences the operations of his edicts, with the previous allowance of a short respite for confession and pardon. A painful death was inflicted by the amputation of the sinful instrument, or the insertion of sharp reeds into the pores and tubes of most exquisite sensibility." One consequence of such legislation may be easily foreseen. "A sentence of death and infamy was often founded on the slight and suspicious evidence of a child or a servant: the guilt of the green faction, of the rich, and of the enemies of Theodora, was presumed by the judges, and pæderasty became the crime of those to whom no crime could be imputed."

This state of things has prevailed wherever the edicts of Justinian have been adopted into the laws of nations. The Cathari, the Paterini, the heretics of Provence, the Templars, the Fraticelli, were all accused of unnatural crimes, tortured into confession, and put to death. Where nothing else could be adduced against an unpopular sect, a political antagonist, a wealthy corporation, a rival in literature, a powerful party-leader, unnatural crime

was insinuated, and a cry of "Down with the pests of society" prepared the populace for a crusade.

It is the common belief that all subjects of sexual inversion have originally loved women, but that, through monstrous debauchery and superfluity of naughtiness, tiring of normal pleasure, they have wilfully turned their appetites into other channels. This is true about a certain number. But the sequel of this Essay will prove that it does not meet by far the larger proportion of cases, in whom such instincts are inborn, and a considerable percentage in whom they are also inconvertible. Medical jurists and physicians have recently agreed to accept this as a fact.

It is the common belief that a male who loves his own sex must be despicable, degraded, depraved, vicious, and incapable of humane or generous sentiments. If Greek history did not contradict this supposition, a little patient enquiry into contemporary manners would suffice to remove it. But people will not take this trouble about a matter, which, like Gibbon, they "touch with reluctance and despatch with impatience." Those who are obliged to do so find to their surprise that "among the men who are subject to this deplorable vice there are even quite intelligent, talented, and highly-placed persons, of excellent and even noble character."^[2] The vulgar expect to discover the objects of their outraged animosity in the scum of humanity. But these may be met with every day in drawing-rooms, law-courts, banks, universities, mess-rooms; on the bench, the throne, the chair of the professor; under the blouse of the workman, the cassock of the priest, the epaulettes of the officer, the smock-frock of the ploughman, the wig of the barrister, the mantle of the peer, the costume of the actor, the tights of the athlete, the gown of the academician.

It is the common belief that one, and only one, unmentionable act is what the lovers seek as the source of their unnatural gratification, and that this produces spinal disease, epilepsy, consumption, dropsy, and the like.^[3] Nothing can be more mistaken, as the scientifically reported cases of avowed and adult sinners amply demonstrate. Neither do they invariably or even usually prefer the *aversa Venus*; nor, when this happens, do they exhibit peculiar signs of suffering in health.^[4] Excess in any venereal pleasure will produce diseases of nervous exhaustion and imperfect nutrition. But the indulgence of inverted sexual instincts within due limits,

cannot be proved to be especially pernicious. Were it so, the Dorians and Athenians, including Sophocles, Pindar, Æschines, Epaminondas, all the Spartan kings and generals, the Theban legion, Pheidias, Plato, would have been one nation of rickety, phthisical, dropsical paralytics. The grain of truth contained in this vulgar error is that, under the prevalent laws and hostilities of modern society, the inverted passion has to be indulged furtively, spasmodically, hysterically; that the repression of it through fear and shame frequently leads to habits of self-abuse; and that its unconquerable solicitations sometimes convert it from a healthy outlet of the sexual nature into a morbid monomania.^[5] It is also true that professional male prostitutes, like their female counterparts, suffer from local and constitutional disorders, as is only natural.^[6]

It is the common belief that boys under age are specially liable to corruption. This error need not be confuted here. Anyone who chooses to read the cases recorded by Casper-Liman, Casper in his Novellen, Krafft-Ebing, and Ulrichs, or to follow the developments of the present treatise, or to watch the manners of London after dark, will be convicted of its absurdity. Young boys are less exposed to dangers from abnormal than young girls from normal voluptuaries.

It is the common belief that all subjects from inverted instinct carry their lusts written in their faces; that they are pale, languid, scented, effeminate, painted, timid, oblique in expression. This vulgar error rests upon imperfect observation. A certain class of such people are undoubtedly feminine. From their earliest youth they have shown marked inclination for the habits and the dress of women; and when they are adult, they do everything in their power to obliterate their manhood. It is equally true that such unsexed males possess a strong attraction for some abnormal individuals. But it is a gross mistake to suppose that all the tribe betray these attributes. The majority differ in no detail of their outward appearance, their physique, or their dress from normal men. They are athletic, masculine in habits, frank in manner, passing through society year after year without arousing a suspicion of their inner temperament. Were it not so, society would long ago have had its eyes opened to the amount of perverted sexuality it harbours.

The upshot of this discourse on vulgar errors is that popular opinion is made up of a number of contradictory misconceptions and confusions.

Moreover, it has been taken for granted that "to investigate the depraved instincts of humanity is unprofitable and disgusting." Consequently the subject has been imperfectly studied; and individuals belonging to radically different species are confounded in one vague sentiment of reprobation. Assuming that they are all abominable, society is content to punish them indiscriminately. The depraved debauchee who abuses boys receives the same treatment as the young man who loves a comrade. The male prostitute who earns his money by extortion is scarcely more condemned than a man of birth and breeding who has been seen walking with soldiers.

III.

LITERATURE—DESCRIPTIVE.

SEXUAL inversion can boast a voluminous modern literature, little known to general readers. A considerable part of this is pornographic, and need not arrest our attention.^[7] A good deal is descriptive, scientific, historical, anthropological, apologetical and polemical. With a few books in each of these kinds I propose to deal now.

The first which falls under my hand is written by a French official, who was formerly Chief of the Police Department for Morals in Paris.^[8] M. Carlier, during ten years, had excellent opportunities for studying the habits of professional male prostitutes and their frequenters. He had condensed the results of his experience in seven very disagreeable chapters, which offer a revolting picture of vice and systematised extortion in the great metropolis.

"In the numerous books," says M. Carlier, "which treat of prostitution, the antiphysical passions have hitherto been always deliberately omitted. Officially, public opinion does not recognise them, the legislature will take no notice of them. The police are left alone to react against them; and the unequal combat may some day cease, since it is supported by no text of the code and no regulation of the state. When that happens, pæderasty will become a calamity far more dangerous, more scandalous, than female

prostitution, the organisation of which it shares in full. A magistrate once declared that 'in Paris it is the school where the cleverest and boldest criminals are formed; and as a matter of fact, it produces associations of special scoundrels, who use it as the means of theft and *chantage*, not stopping short of murder in the execution of their plots.'

It will be seen from this exordium that M. Carlier regards the subject wholly from the point of view of prostitution. He has proved abundantly that male prostitution is organised in Paris upon the same system as its female counterpart, and he has demonstrated that this system is attended with the same dangers to society.

A violent animus against antiphysical passions makes him exaggerate these dangers, for it is clear that normal vice is no less free from sordid demoralisation and crimes of violence than its abnormal twin-brother. Both are fornication; and everywhere, in Corinth as in Sodom, the prostitute goes hand in hand with the bully, the robber, and the cut-throat.

With reference to the legal position of these passions in France, he says: "Pæderasty is not punished by our laws. It can only come within the reach of the code by virtue of circumstances under which it may be practised. If the facts take place in the presence of witnesses, or in a place open to public observation, there will be an outrage to decency. If minors are seduced, there may be proof of the habitual incitement of minors to debauch, corruption, or even rape. But the passion itself is not subject to penalty; it is only a vice arising from one of the seven deadly sins. We have no intention of analysing this perverted instinct. Since the law does not regard it, we will do like the law. We will pass in silence all its private details, occupying ourselves only with what meets the eye, with what may be called a veritable prostitution."

M. Carlier proceeds to describe the two main classes, which in France are known as *tantes* and *amateurs*. The former are subdivided into minor branches, under the names of *jésus*, *petits jésus*, *corvettes* (naval), soldiers. The latter, called also *rivettes*, are distinguished by their tastes for different sorts of *tantes*.

Those who are interested in such matters may turn to M. Carlier's pages for minute information regarding the habits, coteries, houses of debauch,

bullies, earnings, methods of extortion, dwellings, balls, banquets, and even wedding-parties of these people. A peculiar world of clandestine vice in a great city is revealed; and the authentic documents, abundantly presented, render the picture vivid in its details. From the official papers which passed through M. Carlier's bureau during ten years (1860-70), he compiles a list of 6,342 pæderasts who came within the cognisance of the police: 2,049 Parisians, 3,709 provincials, 484 foreigners. Of these 3,532, or more than the half, could not be convicted of illegal acts.

While devoting most of his attention to professionals who dress like women, and have become exactly similar to the effeminated youth described in *Monsieur Vénus*,^[9] Carlier gives some curious details about the French army. Soldiers are no less sought after in France than in England or in Germany, and special houses exist for military prostitution both in Paris and the garrison towns.^[10] Upon this point it should be remarked that Carlier expresses a very strong opinion regarding the contagiousness of antiphysical passion. And certainly many facts known about the French army go to prove that these habits have been contracted in Algeria, and have spread to a formidable extent through whole regiments.^[11]

In conclusion, M. Carlier, though he so strongly deplors the impunity extended by French law to sexual inversion, admits that this has not augmented the evil. Speaking about England, where legal penalties are heavy enough, he says; "Though they call it the *nameless crime* there, it has in England at least as many votaries as in France, and they are quite as depraved."^[12]

IV.

LITERATURE—MEDICO-FORENSIC.

CARLIER'S book deals with the external aspects of inverted sexuality, as this exists in Paris under the special form of prostitution. The author professes to know nothing more about the subject than what came beneath his notice in

the daily practice of his trade as a policeman. He writes with excusable animosity. We see at once that he is neither a philosopher by nature, nor a man of science, but only a citizen, endowed with the normal citizen's antipathy for passions alien to his own. Placed at the head of the Bureau of Morals, Carlier was brought into collision with a tribe of people whom he could not legally arrest, but whom he cordially hated. They were patently vicious; and (what was peculiarly odious to the normal man) these degraded beings were all males. He saw that the public intolerance of "antiphysical passions," which he warmly shared, encouraged an organised system of *chantage*. Without entertaining the question whether public opinion might be modified, he denounced the noxious gang as pests of society. The fact that England, with her legal prohibitions, suffered to the same extent as France from the curse of "pæderasty," did not make him pause. Consequently, the light which he has thrown upon the subject of this treatise only illuminates the dark dens of male vice in a big city. He leaves us where we were about the psychological and ethical problem. He shows what deep roots the passion strikes in the centres of modern civilisation, and how it thrives under conditions at once painful to its victims and embarrassing to an agent of police.

Writers on forensic medicine take the next place in the row of literary witnesses. It is not their business to investigate the psychological condition of persons submitted to the action of the laws. They are concerned with the law itself, and with those physical circumstances which may bring the accused within its operation, or may dismiss him free from punishment.

Yet their function, by importing the quality of the physician into the sphere of jurisprudence, renders them more apprehensive of the underlying problem than a mere agent of police. We expect impartial scientific scrutiny in such authorities, and to some extent we find it.

The leading writers on forensic medicine at the present time in Europe are Casper (edited by Liman) for Germany, Tardieu for France, and Taylor for England. Taylor is so reticent upon the subject of unnatural crime that his handbook on "The Principles and Practice of Medical Jurisprudence" does not demand minute examination. It may, however, be remarked that he believes false accusations to be even commoner in this matter than in the case of rape, since they are only too frequently made the means of

blackmailing. For this reason he leaves the investigation of such crimes to the lawyers.

Both Casper and Tardieu discuss the topic of sexual inversion with antipathy. But there are notable points of difference in the method and in the conclusions of the two authors. Tardieu, perhaps because he is a Frenchman, educated in the school of Paris, which we have learned to know from Carlier, assumes that all subjects of the passion are criminal or vicious. He draws no psychological distinction between pæderast and pæderast. He finds no other name for them, and looks upon the whole class as voluntarily degraded beings who, for the gratification of monstrous desires, have unsexed themselves. A large part of his work is devoted to describing what he believes to be the signs of active and passive immorality in the bodies of persons addicted to these habits.^[13] It is evident that imagination has acted powerfully in the formation of his theories. But this is not the place to discuss their details.^[14]

Casper and Liman approach the subject with almost equal disgust, but with more regard for scientific truth than Tardieu. They point out that the term pæderast is wholly inadequate to describe the several classes of male persons afflicted with sexual inversion. They clearly expect, in course of time, a general mitigation of the penalties in force against such individuals. According to them, the penal laws of North Germany, on the occasion of their last revision, would probably have been altered, had not the jurists felt that the popular belief in the criminality of pæderasts ought to be considered.^[15] Consequently, a large number of irresponsible persons, in the opinion of experts like Casper and Liman, are still exposed to punishment by laws enacted under the influence of vulgar errors.

These writers are not concerned with the framing of codes, nor again with the psychological diagnosis of accused persons. It is their business to lay down rules whereby a medical authority, consulted in a doubtful case, may form his own view as to the guilt or innocence of the accused. Their attention is therefore mainly directed to the detection of signs upon the bodies of incriminated individuals.

This question of physical diagnosis leads them into a severe critique of Tardieu. Their polemic attacks each of the points which he attempted to establish. I must content myself by referring to the passage of their work

which deals with the important topic.^[16] Suffice it here to say that they reject all signs as worse than doubtful, except a certain deformation of one part of the body, which may possibly be taken as the proof of habitual prostitution, when it occurs in quite young persons. Of course they admit that wounds, violent abrasions of the skin, in certain places, and some syphilitic affections strongly favour the presumption of a criminal act. Finally, after insisting on the insecurity of Tardieu's alleged signs, and pointing out the responsibility assumed by physicians who base a judgment on them, the two Germans sum up their conclusions in the following words (p. 178): "It is extremely remarkable that while Tardieu mentions 206 cases, and communicates a select list of 19, which appear to him to exhibit these peculiar conformations of the organs, he can only produce one single instance where the formation seemed indubitable. Let anyone peruse his 19 cases, and he will be horrified at the unhesitating condemnations pronounced by Tardieu." The two notes of exclamation which close this sentence in the original are fully justified. It is indeed horrifying to think that a person, implicated in some foul accusation, may have his doom fixed by a doctinaire like Tardieu. Antipathy and ignorance in judges and the public, combined with erroneous canons of evidence in the expert, cannot fail to lead in such cases to some serious miscarriage of justice.

Passing from the problem of diagnosis and the polemic against Tardieu, it must be remarked that Casper was the first writer of this class to lay down the distinction between inborn and acquired perversion of the sexual instinct. The law does not recognise this distinction. If a criminal act be proved, the psychological condition of the agent is legally indifferent—unless it can be shown that he was clearly mad and irresponsible, in which case he may be consigned to a lunatic asylum instead of a jail. But Casper and Liman, having studied the question of sexual maladies in general, and given due weight to the works of Ulrichs, call attention to the broad differences which exist between persons in whom abnormal appetites are innate and those in whom they are acquired. Their companion sketches of the two types deserve to be translated and presented in a somewhat condensed form.^[17]

"In the majority of persons who are subject to this vice, it is congenital; or at any rate the sexual inclination can be followed back into the years of childhood, like a kind of physical hermaphroditism. Sexual contact with a

woman inspires them with real disgust. Their imagination delights in handsome young men, and statues or pictures of the same. In the case of this numerous class of pæderasts there is therefore no depraved fancy at work, no demoralisation through satiety of natural sexual appetite,^[18] Their congenital impulse explains the fact, moreover, that very many pæderasts are addicted to what may be termed a Platonic voluptuousness, and feel themselves drawn towards the objects of their desire with a warmth of passion more fervent than is common in the relations of the opposed sexes; that, in other cases again, they are satisfied with embracements, from which they derive a mutual pleasure. Westphal maintains that this anomalous direction of the sexual appetite is more often the symptom of a psychopathical, neuropathical condition than people commonly suppose."^[19]

"In the case of another class of men, upon the contrary, the taste for this vice has been acquired in life, and is the result of over-satiety with natural pleasures. People of this stamp sometimes indulge their gross appetites alternately with either sex. I once observed a man, after contracting a venereal disease with women, adopt pæderasty out of fear of another infection; but he was, it must be admitted, a weak-minded individual. In all the great towns of Europe the vice goes creeping around, unobserved by the uninitiated. It appears that there is no inhabited spot of the globe where it may not be discovered. I said, unobserved by the uninitiated, advisedly. In antiquity the members of the sect had their own means of mutual recognition. And at the present time, these men know each other at first sight; moreover, they are found everywhere, in every station of society, without a single exception. 'We recognise each other at once,' says the writer of a report which I shall communicate below: 'A mere glance of the eye suffices; and I have never been deceived. On the Rigi, at Palermo, in the Louvre, in the Highlands of Scotland, in Petersburg, on disembarking at the port of Barcelona, I have found people, never seen by me before, and whom I discriminated in a second.' Several men of this sort whom I have known (continues Casper) are certainly accustomed to dress and adorn themselves in a rather feminine way. Nevertheless, there are indisputable pæderasts, who present an entirely different aspect, some of them elderly and negligent in their attire, and people of the lower classes, distinguished by absolutely nothing in their exterior from other persons of the same rank."

Medico-juristic science made a considerable step when Casper adopted this distinction of two types of sexual inversion. But, as is always the case in the analysis of hitherto neglected phenomena, his classification falls far short of the necessities of the problem. While treating of acquired sexual inversion, he only thinks of debauchees. He does not seem to have considered a deeper question—deeper in its bearing upon the way in which society will have to deal with the whole problem—the question of how far these instincts are capable of being communicated by contagion to persons in their fullest exercise of sexual vigour. Taste, fashion, preference, as factors in the dissemination of anomalous passions, he has left out of his account. It is also, but this is a minor matter, singular that he should have restricted his observations on the freemasonry among pæderasts to those in whom the instinct is acquired. That exists quite as much or even more among those in whom it is congenital.

The upshot of the whole matter, however, is that the best book on medical jurisprudence now extant repudiates the enormities of Tardieu's method, and lays it down for proved that "the majority of persons who are subject" to sexual inversion come into the world, or issue from the cradle, with their inclination clearly marked.

V.

LITERATURE—MEDICINE.

MEDICAL writers upon this subject are comparatively numerous in French and German literature, and they have been multiplying rapidly of late years. The phenomenon of sexual inversion is usually regarded in these books from the point of view of psychopathic or neuropathic derangement, inherited from morbid ancestors, and developed in the patient by early habits of self-abuse.

What is the exact distinction between "psychopathic" and "neuropathic" I do not know. The former term seems intelligible in the theologian's mouth,

the latter in a physician's. But I cannot understand both being used together to indicate different kinds of pathological diathesis. What is the soul, what are the nerves? We have probably to take the two terms as indicating two ways of considering the same phenomenon; the one subjective, the other objective; "psychopathic" pointing to the derangement as observed in the mind emotions of its subject; "neuropathic" to the derangement as observed in anomalies of the nervous system.

It would be impossible, in an essay of this kind, to review the whole mass of medical observation, inference and speculation which we have at our command. Nor is a layman, perhaps, well qualified for the task of criticism and comparison in a matter of delicacy where doctors differ as to details. I shall therefore content myself with giving an account of four of the most recent, most authoritative, and, as it seems to me, upon the whole most sensible studies. Moreau, Tarnowsky, Krafft-Ebing and Lombroso take very nearly similar views of the phenomenon; and between them they are gradually forming a theory which is likely to become widely accepted.

Des Aberrations du Sens Génésique, par le Dr. Paul Moreau, 4th edition, 1887.

Moreau starts with the proposition that there is a sixth sense, "le sens génital," which, like other senses, can be injured psychically and physically without the mental functions, whether affective or intellectual, suffering thereby. His book is therefore a treatise on the diseases of the sexual sense. These diseases are by no means of recent origin, he says. They have always and everywhere existed.

He begins with a historical survey, which, so far as antiquity is concerned, is very defective. Having quoted with approval the following passage about Greek society:—

"La sodomie se répand dans toute la Grèce; les écoles des philosophes deviennent des maisons de débauche, et les grands exemples d'amitié légués par le paganisme ne sont, pour la plupart, qu'une infâme turpitude voilée par une sainte apparence": having quoted these words of Dr. Descuret, Moreau leaves Greece alone, and goes on to Rome. The state of morals in Rome under the empire he describes as "une dépravation malade, devenue par la

force des choses héréditaire, endémique, épidémique." Then follows a short account of the emperors and their female relatives. "Cet éréthisme génésique qui, pendant près de deux siècles, régna à l'état épidémique dans Rome" he ascribes mainly to heredity. Of Julia, the daughter of Augustus, he says, "Peut-on lutter contre un état morbide héréditaire?" The union of unrestrained debauchery and ferocity with great mental gifts strikes him as a note of disease; and he winds up with this sentence: "Parmi les causes les plus fréquentes des aberrations du sens génital, l'hérédité tient la première place."

Then he passes to the middle ages, and dwells upon the popular belief in *incubi* and *succubi*. It is curious to find him placing Leo X., François I., Henri IV., Louis XIV., among the neuropathics. When it comes to this, everybody with strong sexual instincts, and the opportunity of indulging them, is a nervous invalid. Modern times are illustrated by the debaucheries of the Regency, the reign of Louis XV., Russian ladies, the Marquis de Sade. The House of Orleans seems in truth to have been tainted with hereditary impudicity of a morbid kind. But if it was so at the end of the last century, it has since the Revolution remarkably recovered health—by what miracle?

Moreau now formulates the thesis he wishes to prove: "L'aberration pathologique des sentiments génésiques doit être assimilée complètement à une névrose, et, comme telle, son existence est compatible avec les plus hautes intelligences." He discovers hereditary taint universally present in these cases. "Hérédité directe, hérédité indirecte, hérédité transformée, se trouve chez les génésiaques."

Passing to etiology, he rests mainly upon an organism predisposed by ancestry, and placed in a milieu favourable to its morbid development. Provocative causes are not sufficient to awake the aberration in healthy organisms, but the least thing will set a predisposed organism on the track. This, I may observe, seems to preclude simple imitation, upon which Moreau afterwards lays considerable stress; for if none but the already tainted can be influenced by their milieu, none but the tainted will imitate.

What he calls "General Physical Causes" are (1) Extreme Poverty, (2) Age, (3) Constitution, (4) Temperament, (5) Seasons of the Year, (6) Climate, (7) Food.

Extreme poverty leads to indiscriminate vice, incest, sodomy, &c. That is true, and we know that our city poor and the peasants of some countries are habitually immoral. Yet Moreau proves too much here. For, according to his principles, hereditary neurosis ought by this time to have become chronic, epidemic, endemic, in all the city poor and in all the peasants of all countries; which is notably not the fact. Puberty and the approach of senility are pointed out as times when genesiac symptoms manifest themselves. His observations upon the other points are commonplace enough; and he repeats the current notion that inhabitants of hot climates are more lascivious than those of the North.

Among "Individual Physical Causes," Moreau treats of malformation of the sexual organs, diseases of those organs, injuries to the organism by wounds, blows, poisons, masturbation, excessive indulgence in venery, and exaggerated continence.

When we come to "General Moral Causes," heredity plays the first part. This may be direct, i.e., the son of a genesiac will have the same tastes as his father, or transformed; what is phthisis in one generation assuming the form of sexual aberration in another. Bad education and exposure to bad examples, together with imitation, are insisted on more vaguely.

The "Individual Moral Causes" include impressions received in early youth, on which I think perhaps Moreau does not lay sufficient stress, and certain tendencies to subjective preoccupations with ideal ideas, certain abnormal physical conditions which disturb the whole moral sensibility.

Passing to Pathological Anatomy, Moreau declares that it is as yet impossible to localise the sexual sense. The brain, the cerebellum, the spinal marrow? We do not know. He seems to incline toward the cerebellum.

It is not necessary to follow Moreau in his otherwise interesting account of the various manifestations of sexual disease. The greater part of these have no relation to the subject of my work. But what he says in passing about "pæderasts, sodomites, saphists," has to be resumed. He reckons them among "A class of individuals who cannot and ought not to be confounded either with men enjoying the fulness of their intellectual faculties, or yet with madmen properly so called. They form an intermediate class, a mixed class, constituting a real link of union between reason and madness, the

nature and existence of which can most frequently be explained only by one word: Heredity" (p. 159). It is surprising, after this announcement, to discover that what he has to say about sexual inversion is limited to Europe and its moral system, "having nothing to do with the morals of other countries where pæderasty is accepted and admitted" (p. 172, note). Literally, then, he regards sexual inversion in modern Christian Europe as a form of hereditary neuropathy, a link between reason and madness; but in ancient Greece, in modern Persia and Turkey, he regards the same psychological anomaly from the point of view, not of disease, but of custom. In other words, an Englishman or a Frenchman who loves the male sex must be diagnosed as tainted with disease; while Sophocles, Pindar, Pheidias, Epaminondas, Plato, are credited with yielding to an instinct which was healthy in their times because society accepted it. The inefficiency of this distinction in a treatise of analytical science ought to be indicated. The bare fact that ancient Greece tolerated, and that modern Europe refuses to tolerate sexual inversion, can have nothing to do with the etiology, the pathology, the psychological definition of the phenomenon in its essence. What has to be faced is that a certain type of passion flourished under the light of day and bore good fruits for society in Hellas; that the same type of passion flourishes in the shade and is the source of misery and shame in Europe. The passion has not altered; but the way of regarding it morally and legally is changed. A scientific investigator ought not to take changes of public opinion into account when he is analysing a psychological peculiarity.

This point on which I am insisting—namely, that it is illogical to treat sexual inversion among the modern European races as a malady, when you refer its prevalence among Oriental peoples and the ancient Hellenes to custom—is so important that I shall illustrate it by a passage from one of Dr. W. R. Huggard's Essays.^[20] "It may be said that the difference between the delusion of the overpowering impulse in the Fijian and in the insane Englishman is that, in the savage, the mental characters are due to education and surroundings; while, in the lunatic they are due to disease. In a twofold manner, however, would this explanation fail. On the one hand, even if in the Fijian there were disease, the question of insanity could not arise in regard to a matter considered by his society to be one of indifference. It would be absurd to talk of homicidal mania, of nymphomania, and of

kleptomania, as forms of insanity, where murder, promiscuous intercourse, and stealing are not condemned. On the other hand, the assumption that insanity is always due to disease is not merely an unproved, but an improbable supposition. There must, of course, be some defect of organism; but there is every reason to think that, in many cases, the defect is of the nature of a congenital lack of balance between structures themselves healthy; and that many cases of insanity might properly be regarded as a kind of 'throwback' to a type of organisation now common among the lower races of mankind." Substitute any term to indicate sexual inversion for "nymphomania" in this paragraph, and the reasoning precisely suits my argument. It is interesting, by the way, to find this writer agreeing with Ulrichs in his suggestion of a "congenital lack of balance between structures themselves healthy," and with Lombroso in his supposition of atavistic reversion to savagery. Lombroso, we shall see, ultimately identifies congenital criminality (one form of which is sexual aberration in this theory) with moral insanity; and here Dr. Huggard is, unconsciously perhaps, in agreement with him; for he defines insanity to be "any mental defect that renders a person unable (and not capable of being made able by punishment) to conform to the requirements of society"—a definition which is no less applicable to the born criminal than to the madman.

How little Dr. Moreau has weighed the importance of ancient Greece in his discussion of this topic, appears from the omission of all facts supplied by Greek literature and history in the introduction to his Essay. He dilates upon the legends recorded by the Roman Emperors, because these seem to support his theory of hereditary malady. He uses Juvenal, Tacitus, Suetonius, and the Augustan Histories to support his position, although they form part of the annals of a people among whom "pæderasty was accepted and admitted." He ignores the biographies of the Spartan kings, the institutions of Crete, the Theban Sacred Band, the dialogues of Plato, the anecdotes related about Pheidias, Sophocles, Pindar, Demosthenes, Alcibiades, and so forth. Does he perhaps do so because they cannot in any way be made to square with his theory of morbidity? The truth is that ancient Greece offers insuperable difficulties to theorists who treat sexual inversion exclusively from the points of view of neuropathy, tainted heredity, and masturbation. And how incompetent Dr. Moreau is to deal with Greek matters may be seen in the grotesque synonym he has invented

for *pæderasty-philopodie* (p. 173). Properly the word is compounded of φιλεῖν and πους; but I suppose it is meant to suggest φιλεῖν and *podex*.

In a chapter on Legal Medicine, Moreau starts by observing that "The facts are so monstrous, so tainted with aberration, and yet their agents offer so strong an appearance of sound reason, occupy such respectable positions in the world, are reputed to enjoy such probity, such honourable sentiments, &c., that one hesitates to utter an opinion." Proceeding further, he considers it sufficiently established that: "Not unfrequently, under the influence of some vice of organism, generally of heredity, the moral faculties may undergo alterations, which, if they do not actually destroy the social relations of the individual, as happens in cases of declared insanity, yet modify them to a remarkable degree, and certainly demand to be taken into account, when we have to estimate the morality of these acts" (p. 301). His conclusion, therefore, is that the aberrations of the sexual sense, including its inversion, are matters for the physician rather than the judge, for therapeutics rather than punishment, and that representatives of the medical faculty ought to sit upon the bench as advisers or assessors when persons accused of outrages against decency come to trial. "While we blame and stigmatise these crimes with reason, the horrified intellect seeks an explanation and a moral excuse (nothing more) for such odious acts. It insists on asking what can have brought a man honourably known in society, enjoying (apparently at least) the fulness of his mental faculties, to these base and shameful self-indulgences. We answer: Such men for the most part are abnormal intelligences, veritable candidates for lunacy, and, what is more, they are the subjects of hereditary maladies. But let us cast a veil over a subject so humiliating to the honour of humanity!" (p. 177).

As the final result of this analysis, Moreau classifies sexual inversion with erotomania, nymphomania, satyriasis, bestiality, rape, profanation of corpses, &c., as the symptom of a grave lesion of the procreative sense. He seeks to save its victims from the prison by delivering them over to the asylum. His moral sentiments are so revolted that he does not even entertain the question whether their instincts are natural and healthy though abnormal. Lastly, he refuses to face the aspects of this psychological anomaly which are forced upon the student of ancient Hellas. He does not even take into account the fact, patent to experienced observers, that simple

folk not unfrequently display no greater disgust for the abnormalities of sexual appetite than they do for its normal manifestations.^[21]

*Die krankhaften Erscheinungen des Geschlechtssinnes. B. Tarnowsky.
Berlin, Hirschwald, 1886.*

This is avowedly an attempt to distinguish the morbid kinds of sexual perversion from the merely vicious, and to enforce the necessity of treating the former not as criminal but as pathological. "The forensic physician discerns corruption, oversatiated sensuality, deep-rooted vice, perverse will, &c., where the clinical observer recognises with certainty a morbid condition of the patient marked by typical steps of development and termination. Where the one wishes to punish immorality, the other pleads for the necessity of methodical therapeutic treatment."

The author is a Russian, whose practice in St. Petersburg has brought him into close professional relations with the male prostitutes and habitual pæderasts of that capital.

He is able therefore to speak with authority, on the ground of a quite exceptional knowledge of the moral and physical disturbances connected with sodomy. I cannot but think that the very peculiarities of his experience have led him to form incomplete theories. He is too familiar with venal pathics, pædicators, and effeminates who prostitute their bodies in the grossest way, to be able to appreciate the subtler bearings of the problem.

Tarnowsky makes two broad divisions of sexual inversion. The first kind is inborn, dependent upon hereditary taint and neuropathic diathesis. He distinguishes three sorts of inborn perversity. In the most marked of its forms it is chronic and persistent, appearing with the earliest dawn of puberty, unmodified by education, attaining to its maximum of intensity in manhood, manifesting, in fact, all the signs of ordinary sexual inclination. In a second form it is not chronic and persistent, but periodical. The patient is subject to occasional disturbances of the nervous centres, which express themselves in violent and irresistible attacks of the perverted instinct. The third form is epileptical.

With regard to acquired sexual inversion, he dwells upon the influence of bad example, the power of imitation, fashion, corrupt literature, curiosity in

persons jaded with normal excesses. Extraordinary details are given concerning the state of schools in Russia (pp. 63-65); and a particular case is mentioned, in which Tarnowsky himself identified twenty-nine passive pæderasts, between the ages of nine and fifteen, in a single school. He had been called in to pronounce upon the causes of an outbreak of syphilis among the pupils. Interesting information is also communicated regarding the prevalence of abnormal vice in St. Petersburg, where it appears that bath-men, cab-drivers, care-takers of houses, and artisans are particularly in request (pp. 98-101). The Russian people show no repugnance for what they call "gentlemen's tricks." Tarnowsky calls attention to ships, garrisons, prisons, as milieux well calculated for the development of this vice, when it had once been introduced by some one tainted with it. His view about nations like the Greeks, the Persians, and the Afghans is that, through imitation, fashion, and social toleration, it has become endemic. But all the sorts of abnormality included under the title of acquired Tarnowsky regards as criminal. The individual ought, he thinks, to be punished by the law. He naturally includes under this category of acquired perversion the vices of old debauchees. At this point, however, his classification becomes confused; for he shows how senile tendencies to sodomitic passion are frequently the symptom of approaching brain disease, to which the reason and the constitution of the patient will succumb. French physicians call this "la pédérastie des ramollis."

Returning to what Tarnowsky says about the inborn species of sexual inversion, I may call attention to an admirable description of the type in general (pp. 11-15) I think, however, that he lays too great stress upon the passivity of the emotions in these persons, their effeminacy of press, habits, inclinations. He is clearly speaking from large experience. So it must be supposed that he has not come across frequent instances of men who feel, look, and act like men, the only difference between them and normal males being that they love their own sex. In describing a second degree of the aberration (pp. 16, 17), he still accentuates effeminacy in dress and habits beyond the point which general observation would justify. Careful study of the cases adduced in Krafft-Ebing's "Psychopathia" supplies a just measure for the criticism of Tarnowsky upon this head. From them we learn that effeminacy of physique and habit is by no means a distinctive mark of the born pæderast. Next it may be noticed that Tarnowsky believes even innate and hereditary tendencies can be modified and overcome by proper moral,

and physique discipline in youth, and that the subjects of them will even be brought to marry in some cases (pp. 17, 18).

It would not serve any purpose of utility here to follow Tarnowsky into further details regarding the particular forms assumed by perverted appetite. But attention must be directed to his definition of hereditary predisposition (pp. 33-35). This is extraordinarily wide. He regards every disturbance of the nervous system in an ancestor as sufficient; epilepsy, brain disease, hysteria, insanity. He includes alcoholism, syphilitic affections, pneumonia, typhus, physical exhaustion, excessive anæmia, debauchery, "anything in short which is sufficient to enfeeble the nervous system and the sexual potency of the parent." At this point he remarks that long residence at high altitudes tends to weaken the sexual activity and to develop perversity, adducing an old belief of the Persians that pæderastia originated in the high plateau of Armenia (p. 35). It need hardly, I think, be said that these theories are contradicted to the fullest extent by the experience of those who have lived with the mountaineers of Central Europe. They are indeed capable of continence to a remarkable degree, but they are also vigorously procreative and remarkably free from sexual inversion.

Finally, it must be observed that Tarnowsky discusses the physical signs of active and passive sodomy at some length (108-135). His opportunities of physical observation in medical practice as the trusted physician of the St. Petersburg pæderasts gives him the right to speak with authority. The most decisive thing he says is that Casper, through want of familiarity with the phenomena, is too contemptuous toward one point in Tardieu's theory. In short, Tarnowsky feels sure that a habitual passive pæderast will show something like the sign in question, if examined by an expert in the proper position. But that is the only deformation of the body on which he relies.

Psychopathia Sexualis, mit besonderer Berücksichtigung der Conträren Sexualempfindung. Von Dr. R. v. Krafft-Ebing. Stuttgart, Enke, 1889.

Krafft-Ebing took the problem of sexual inversion up when it had been already investigated by a number of pioneers and predecessors. They mapped the ground out, and established a kind of psychical chart. We have seen the medical system growing in the works of Moreau and Tarnowsky. If anything, Krafft-Ebing's treatment suffers from too much subdivision and

parade of classification. It is only, however, by following the author in his differentiation of the several species that we can form a conception of his general theory, and of the extent of the observations upon which this is based. He starts with (A) Sexual Inversion as an acquired morbid phenomenon. Then he reviews (B) Sexual Inversion as an inborn morbid phenomenon.

(A) "Sexual feeling and sexual instinct," he begins, "remain latent, except in obscure foreshadowings and impulses, until the time when the organs of procreation come to be developed. During the period of latency, when sex has not arrived at consciousness, is only potentially existent, and has no powerful organic bias, influences may operate, injurious to its normal and natural evolution. In that case the germinating sexual sensibility runs a risk of being both qualitatively and quantitatively impaired, and under certain circumstances may even be perverted into a false channel. Tarnowsky has already published this experience. I can thoroughly confirm it, and am prepared to define the conditions of this acquired, or, in other words, this cultivated perversion of the sexual instinct in the following terms. The fundamental or ground predisposition is a neuropathic hereditary bias. The exciting or efficient cause is sexual abuse, and more particularly onanism. The etiological centre of gravity has to be sought in hereditary disease; *and I think it is questionable whether an untainted individual is capable of homosexual feelings at all.*"^[22]

Krafft-Ebing's theory seems then to be that all cases of acquired sexual inversion may be ascribed in the first place to morbid predispositions inherited by the patient (*Belastung*), and in the second place to onanism as the exciting cause of the latent neuropathic ailment.

He excludes the hypothesis of a physiological and healthy deflection from the normal rule of sex. "I think it questionable," he says, "whether the untainted individual (*das unbelastete Individuum*) is capable of homosexual feelings at all." The importance of this sentence will be apparent when we come to deal with Krafft-Ebing's account of congenital sexual inversion, which he establishes upon a large induction of cases observed in his own practice.

For the present we have the right to assume that Krafft-Ebing regards sexual inversion, whether "acquired" or "congenital," as a form of inherited

neuropathy (*Belastung*). In cases where it seems to be "acquired," he lays stress upon the habit of self-pollution.

This is how he states his theory of onanism as an exciting cause of inherited neuropathy, resulting in sexual inversion. The habit of self-abuse prepares the patient for abnormal appetites by weakening his nervous force, degrading his sexual imagination, and inducing hyper-sensibility in his sexual apparatus. Partial impotence is not unfrequently exhibited. In consequence of this sophistication of his nature, the victim of inherited neuropathy and onanism feels shy with women, and finds it convenient to frequent persons of his own sex. In other words, it is supposed to be easier for an individual thus broken down at the centres of his life to defy the law and to demand sexual gratification from men than to consort with venal women in a brothel.

Krafft-Ebing assumes that males who have been born with neuropathic ailments of an indefinite kind will masturbate, destroy their virility, and then embark upon a course of vice which offers incalculable dangers, inconceivable difficulties, and inexpressible repugnances. That is the theory. But whence, if not from some overwhelming appetite, do the demoralised victims of self-abuse derive courage for facing the obstacles which a career of sexual inversion carries with it in our civilisation? One would have thought that such people, if they could not approach a prostitute in a brothel, would have been unable to solicit a healthy man upon the streets. The theory seems to be constructed in order to elude the fact that the persons designated are driven by a natural impulse into paths far more beset with difficulties than those of normal libertines.

Krafft-Ebing gives the details of five cases of "acquired" sexual inversion. Three of these were the children of afflicted parents. One had no morbid strain in his ancestry, except pulmonary consumption. The fifth sprang from a strong father and a healthy mother. Masturbation entered into the history of all.

It must be observed, in criticising Krafft-Ebing's theory, that it is so constructed as to render controversy almost impossible. If we point out that a large percentage of males who practise onanism in their adolescence do not acquire sexual inversion, he will answer that these were not tainted with hereditary disease. The autobiographies of onanists and passionate woman-

lovers (J. J. Rousseau, for example, who evinced a perfect horror of homosexual indulgence, and J. J. Bouchard, whose disgusting excentricities were directed toward females even in the period of his total impotence) will be dismissed with the remark that the ancestors of these writers must have shown a clean record.

It is difficult to square Krafft-Ebing's theory with the phenomena presented by schools, both public and private, in all parts of Europe. In these institutions not only is masturbation practised to a formidable extent, but it is also everywhere connected with some form of sexual inversion, either passionately Platonic or grossly sensual. Nevertheless, we know that few of the boys addicted to these practices remain abnormal after they have begun to frequent women. The same may be said about convict establishments, military prisons, and the like.^[23] With such a body of facts staring us in the face, it cannot be contended that "only tainted individuals are capable of homosexual feelings." Where females are absent or forbidden, males turn for sexual gratification to males. And in certain conditions of society sexual inversion may become permanently established, recognised, all but universal. It would be absurd to maintain that all the boy-lovers of ancient Greece owed their instincts to hereditary neuropathy complicated with onanism.

The invocation of heredity in problems of this kind is always hazardous. We only throw the difficulty of explanation further back. At what point of the world's history was the morbid taste acquired? If none but tainted individuals are capable of homosexual feelings, how did these feelings first come into existence? On the supposition that neuropathy forms a necessary condition of abnormal instinct, is it generic neuropathy or a specific type of that disorder? If generic, can valid reasons be adduced for regarding nervous malady in any of its aspects (hysteria is the mother, insanity is the father) as the cause of so peculiarly differentiated an affection of the sexual appetite? If specific, that is, if the ancestors of the patient must have been afflicted with sexual inversion, in what way did they acquire it, supposing all untainted individuals to be incapable of the feeling?

At this moment of history there is probably no individual in Europe who has not inherited some portion of a neuropathic stain. If that be granted,

everybody is liable to sexual inversion, and the principle of heredity becomes purely theoretical.

That sexual inversion may be and actually is transmitted, like any other quality, appears to be proved by the history of well-known families both in England and in Germany. That it is not unfrequently exhibited by persons who have a bad ancestral record, may be taken for demonstrated. In certain cases we are justified, then, in regarding it as the sign or concomitant of nervous maladies. But the evidence of ancient Greece or Rome, of what Burton calls the "sotadic races" at the present time, of European schools and prisons, ought to make us hesitate before we commit ourselves to Krafft-Ebing's theory that hereditary affliction is a necessary predisposing cause.
[24]

In like manner, masturbation may be credited with certain cases of acquired homosexual feeling. Undoubtedly the instinct is occasionally evoked in some obscure way by the depraved habit of inordinate self-abuse. Yet the autobiographies of avowed Urnings do not corroborate the view that they were originally more addicted to onanism than normal males. Ulrichs has successfully combated the theory advanced by Tarnowsky, Prager, and Krafft-Ebing, if considered as a complete explanation of the problem.^[25] On the other hand, common experience shows beyond all doubt, that young men between 16 and 20 give themselves up to daily self-abuse without weakening their appetite for women. They love boys and practice mutual self-abuse with persons of their own sex; yet they crave all the while for women. Of the many who live thus during the years of adolescence, some have undoubtedly as bad a family record as the worst of Krafft-Ebing's cases show. Finally, as regards the onanism which is a marked characteristic of some adult Urnings, this must be ascribed in most cases to the repression of their abnormal instincts. They adopt the habit, as Krafft-Ebing himself says, *faute de mieux*.^[26]

In justice to the theory I am criticising, it ought to be remarked that Krafft-Ebing does not contend that wherever hereditary taint and onanism concur, the result will be sexual inversion; but rather that wherever we have diagnosed an acquired form of sexual inversion, we shall discover hereditary taint and onanism. Considering the frequency of both hereditary taint and onanism in our civilisation, this is not risking much. Those factors

are discoverable in a large percentage of male persons. What seems unwarranted by facts is the suggestion that inherited neuropathy is an indispensable condition and the fundamental cause of homosexual instincts. The evidence of ancient Greece, schools, prisons, and sodadic races, compels us to believe that normally healthy people are often born with these instincts or else acquire them by the way of custom. Again, his insinuation that onanism, regarded as the main exciting cause, is more frequent among young people of abnormal inclinations than among their normal brethren, will not bear the test of common observation and of facts communicated in the autobiographies of professed onanists and confessed Urnings.

The problem is too delicate, too complicated, also too natural and simple, to be solved by hereditary disease and self-abuse. When we shift the ground of argument from acquired to inborn sexual inversion, its puzzling character will become still more apparent. We shall hardly be able to resist the conclusion that theories of disease are incompetent to explain the phenomenon in modern Europe. Medical writers abandon the phenomenon in savage races, in classical antiquity, and in the sodadic zone. They strive to isolate it as an abnormal and specifically morbid exception in our civilisation. But facts tend to show that it is a recurring impulse of humanity, natural to some people, adopted by others, and in the majority of cases compatible with an otherwise normal and healthy temperament.

Krafft-Ebing calls attention to the phenomenon of permanent *effeminatio*, in males unsexed by constant riding and the exhaustion of their virility by friction of the genitals—a phenomenon observed by Herodotus among Scythians, and prevalent among some nomadic races of the Caucasus at the present day.^[27] He claims this in support of his theory of masturbation; and within due limits, he has the right to do so. The destruction of the male apparatus for reproduction, whether it be by castration after puberty, or by an accident to the parts, or by a lesion of the spine, or by excessive equitation, as appears proved from the history of nomad tribes, causes men to approximate physically to the female type, and to affect feminine occupations and habits. In proportion as the masculine functions are interfered with, masculine characteristics tend to disappear; and it is curious to notice that the same result is reached upon so many divers ways.

Next he discusses a few cases in which it seems that sexual inversion displays itself episodically under the conditions of a psychopathical disturbance.^[28] That is to say, three persons, two women and one man, have been observed by him, under conditions approaching mental alienation, to exchange their normal sexual inclination for abnormal appetite. In the analysis of the problem these cases cannot be regarded as wholly insignificant. The details show that the subjects were clearly morbid. Therefore they have their value for the building up of a theory of sexual inversion upon the basis of inherited and active disease.

(B) Ultimately, Krafft-Ebing attacks the problem of what he calls "the innate morbid phenomenon" of sexual inversion.^[29] While giving a general description of the subjects of this class, he remarks that the males display a pronounced sexual antipathy for women, and a strongly accentuated sympathy for men. Their reproductive organs are perfectly differentiated on the masculine type; but they desire men instinctively, and are inclined to express their bias by assuming characters of femininity. Women infected by a like inversion, exhibit corresponding anomalies.

Casper, continues Krafft-Ebing, thoroughly diagnosed the phenomenon. Griesinger referred it to hereditary affliction. Westphal defined it as "a congenital inversion of the sexual feeling, together with a consciousness of its morbidity." Ulrichs explained it by the presence of a feminine soul in a male body, and gave the name *Urning*^[30] to its subjects. Gley suggested that a female brain was combined with masculine glands of sex. Magnan hypothesised a woman's brain in a man's body.

Krafft-Ebing asserts that hardly any of these Urnings are conscious of morbidity. They look upon themselves as unfortunate mainly because law and social prejudices stand in the way of their natural indulgence.^[31] He also takes for proved, together with all the authorities he cites, that the abnormal sexual appetite is constitutional and inborn.

Krafft-Ebing, as might have been expected, refers the phenomenon to functional degeneration, dependent upon neuropathical conditions in the patient, which are mainly derived from hereditary affliction.

He confirms the account reported above from Casper as to the platonic or semi-platonic relations of the Urning with the men he likes, his abhorrence

of coition, and his sexual gratification through acts of mutual embracement. The number of Urnings in the world, he says, is far greater than we can form the least conception of from present means of calculation.

At this point he begins to subdivide the subjects of congenital inversion. The first class he constitutes are called by him "Psychical Hermaphrodites." Born with a predominant inclination towards persons of their own sex, they possess rudimentary feelings of a semi-sexual nature for the opposite. These people not unfrequently marry; and Krafft-Ebing supposes that many cases of frigidity in matrimony, unhappy unions, and so forth, are attributable to the peculiar diathesis of the male—or it may be, of the female—in these marriages. They are distinguished from his previous class of "acquired" inversion by the fact that the latter start with instincts for the other sex, which are gradually obliterated; whereas the psychical hermaphrodites commence life with an attraction towards their own sex, which they attempt to overcome by making demands upon their rudimentary normal instincts. Five cases are given of such persons.^[32]

In the next place he comes to true homosexual individuals, or Urnings in the strict sense of that phrase. With them there is no rudimentary appetite for the other sex apparent. They present a "grotesque" parallel to normal men and women, inverting or caricaturing natural appetites. The male of this class shrinks from the female, and the female from the male.^[33] Each is vehemently attracted from earliest childhood to persons of the same sex. But they, in their turn, have to be subdivided into two sub-species. In the first of these, the sexual life alone is implicate; the persons who compose it do not differ in any marked or external characteristics from the type of their own sex; their habits and outward appearance remain unchanged. With the second sub-species the case is different. Here the character, the mental constitution, the habits, and the occupations of the subject have been altered by his or her predominant sexual inversion; so that a male addicts himself to a woman's work, assumes female clothes, acquires a shriller key of voice, and expresses the inversion of his sexual instinct in every act and gesture of his daily life.

It appears from Krafft-Ebing's recorded cases that the first of these sub-species yields nearly the largest number of individuals. He presents eleven detailed autobiographies of male Urnings, in whom the *vita sexualis* alone is

abnormal, and who are differentiated to common observation from normal men by nothing but the nature of their amorous proclivities. The class includes powerfully developed masculine beings, who are unsexed in no particular except that they possess an inordinate appetite for males, and will not look at females.

As regards the family history of the eleven selected cases, five could show a clear bill of health, some were decidedly bad, a small minority were uncertain.

One of these Urnings, a physician, informed Krafft-Ebing that he had consorted with at least six hundred men of his own stamp; many of them in high positions of respectability. In none had he observed an abnormal formation of the sexual organs; but frequently some approximation to the feminine type of body—hair sparingly distributed^[34], tender complexion, and high tone of voice. About ten per cent. eventually adopted love for women. Not ten per cent. exhibited any sign of the *habitus muliebris* in their occupations, dress, and so forth. A large majority felt like men in their relations to men, and were even inclined toward active pæderasty. From the unmentionable act they were deterred by æsthetical repulsion and fear of the law.

The second of these sub-species embraces the individuals with whom the reader of Carlier is familiar, and whom Ulrichs calls Weiblinge. In their boyhood they exhibited a marked disinclination for the games of their school-fellows, and preferred to consort with girls. They helped their mothers in the household, learned to sew and knit, caught at every opportunity of dressing up in female clothes. Later on, they began to call themselves by names of women, avoided the society of normal comrades, hated sport and physical exercise, were averse to smoking and drinking, could not whistle. Whether they refrained from swearing is not recorded. Many of them developed a taste for music, and prided themselves upon their culture. Eventually, when they became unclassed, they occupied themselves with toilette, scandal, tea, and talk about their lovers—dressed as far as possible in female clothes, painted, perfumed and curled their hair—addressed each other in the feminine gender, adopted pseudonyms of Countess or of Princess, and lived the life of women of a dubious demi-monde.^[35]

Yet they remained in their physical configuration males. Unlike the preceding sub-species, they did not feel as men feel towards their sweethearts, but on the contrary like women. They had no impulse toward active pæderasty, no inclination for blooming adolescents. What they wanted was a robust adult; and to him they submitted themselves with self-abandonment. Like all Urnings, they shrank from the act of coition for the most part, and preferred embracements which produced a brief and pleasurable orgasm. But some developed a peculiar liking for the passive act of sodomy or the anomalous act of fellatio.

In this characterisation I have overpassed the limits of the fifteen cases presented by Krafft-Ebing. In order to constitute the type, I have drawn upon one reliable, because sympathetic, source in Ulrichs, and on another reliable, because antipathetic, source in Carlier.

Sexual inversion, in persons of the third main species, has reached its final development. Descending, if we follow Krafft-Ebing's categories, from acquired to innate inversion, dividing the latter into psychopathic hermaphrodites and Urnings, subdividing Urnings into those who retain their masculine habit and those who develop a habit analogous to that of females, we come in this last class to the most striking phenomenon of inverted sex. Here the soul which is doomed to love a man, and is nevertheless imprisoned in a male body, strives to convert that body to feminine uses so entirely that the marks of sex, except in the determined organs of sex, shall be obliterated. And sometimes it appears that the singular operation of nature, with which we are occupied in this Essay, goes even further. The inverted bias given to the sexual appetite, as part of the spiritual nature of the man, can never quite transmute male organs into female organs of procreation. But it modifies the bony structure of the body, the form of the face, the fleshly and muscular integuments to such an obvious extent that Krafft-Ebing thinks himself justified in placing a separate class of androgynous beings (with their gynandrous correspondents) at the end of the extraordinary process.

At this point it will be well to present a scheme of his analysis under the form of a table.

Sexual Inversion		Persistent.
	Acquired	Episodical.

		Psychopathic Hemaphrodites.
Congenital	Urnings	Male Habitus (Mannlinge). Female Habitus (Weiblinge).
	Androgyni.	

What is the rational explanation of the facts presented to us by the analysis which I have formulated in this table cannot as yet be thoroughly determined. We do not know enough about the law of sex in human beings to advance a theory. Krafft-Ebing and writers of his school are at present inclined to refer them all to diseases of the nervous centres, inherited, congenital, excited by early habits of self-abuse. The inadequacy of this method I have already attempted to set forth; and I have also called attention to the fact that it does not sufficiently account for phenomena known to us through history and through every-day experience.

Presently we shall be introduced to a theory (that of Ulrichs) which is based upon a somewhat grotesque and metaphysical conception of nature, and which dispenses with the hypothesis of hereditary disease. I am not sure whether this theory, unsound as it may seem to medical specialists, does not square better with ascertained facts than that of inherited disorder in the nervous centres.

However that may be, the physicians, as represented by Krafft-Ebing, absolve all subjects of inverted sexuality from crime. They represent them to us as the subjects of ancestral malady. And this alters their position face to face with vulgar error, theological rancour, and the stringent indifference of legislators. A strong claim has been advanced for their treatment henceforth, not as delinquents, but as subjects of congenital depravity in the brain centres, over which they have no adequate control.

The fourth medical author, with whom we are about to be occupied, includes sexual inversion in his general survey of human crime, and connects it less with anomalies of the nervous centres than with atavistic reversion to the state of nature and savagery. In the end, it will be seen, he accepts a concordat with the hypothesis of "moral insanity."

Cesare Lombroso. "Der Verbrecher in Anthropologischer, Aerztlicher und Juristischer Beziehung."

This famous book, which has contributed no little to a revolution of opinion regarding crime and its punishment in Italy, contains a searching inquiry into the psychological nature, physical peculiarities, habits, and previous history of criminals.^[36] It is, in fact, a study of the criminal temperament. Lombroso deals in the main, as is natural, with murder, theft, rape, cruelty, and their allied species. But he includes sexual inversion in the category of crimes, and regards the abnormal appetites as signs of that morbid condition into which he eventually revolves the criminal impulse.

Wishing to base his doctrine on a sound foundation, Lombroso begins with what may be termed the embryology of crime. He finds unnatural vices frequent among horses, donkeys, cattle, insects, fowls, dogs, ants. The phenomenon, he says, is usually observable in cases where the male animal has been excluded from intercourse with females. Having established his general position that what we call crimes of violence, robbery, murder, cruelty, blood-thirst, cannibalism, unnatural lust, and so forth, exist among the brutes—in fact, that most of these crimes form the rule and not the exception in their lives—he passes on to the consideration of the savage man. In following his analysis, I shall confine myself to what he says about abnormal sexual passion.

He points out that in New Caledonia the male savages meet together at night in huts for the purpose of promiscuous intercourse (p. 42). The same occurs in Tahiti, where the practice is placed under the protection of a god. Next he alludes to the ancient Mexicans; and then proceeds to Hellas and Rome, where this phase of savage immorality survived and became a recognised factor in social life (p. 43). At Rome, he says, the Venus of the sodomites received the title of Castina (p. 38).

Lombroso's treatment of sexual inversion regarded as a survival from prehistoric times is by no means exhaustive. It might be supplemented and confirmed by what we know about the manners of the Kelts, as reported by Aristotle (Pol. ii. 6. 5.)—Tartars, Persians, Afghans, North American Indians, &c. Diodorus Siculus, writing upon the morals of the Gauls, deserves attention in this respect.^[37] It is also singular to find that the Norman marauders of the tenth century carried unnatural vices wherever

they appeared in Europe.^[38] The Abbot of Clairvaux, as quoted by Lombroso (p. 43), accused them of spreading their brutal habits through society. People accustomed to look upon these vices as a form of corruption in great cities will perhaps be surprised to find them prevalent among nomadic and warlike tribes. But, in addition to survival from half-savage periods of social life, the necessities of warriors thrown together with an insufficiency of women must be considered. I have already suggested that Greek love grew into a custom during the Dorian migration and the conquest of Crete and Peloponnesus by bands of soldiers.

Cannibalism, Lombroso points out (p. 68), originated in necessity, became consecrated by religion, and finally remained as custom and a form of gluttony. The same process of reasoning, when applied to sexual aberrations, helps us to understand how a non-ethical habit, based on scarcity of women, survived as a social and chivalrous institution among the civilised Hellenes.

Lombroso traces the growth of justice in criminal affairs, and the establishment of pains and penalties, up to the instinct of revenge and the despotic selfishness of chiefs in whom the whole property of savage tribes, including women, was vested. This section of his work concludes with the following remarkable sentence (p. 96): "The universal diffusion of crime which we have demonstrated at a certain remote epoch, and its gradual disappearance as a consequence of new crimes springing up, traces of which are still discoverable in our penal codes [he means revenge, the egotism of princes, and ecclesiastical rapacity], are calculated even more than the criminality of brutes to make us doubt of what metaphysicians call eternal justice, and indicate the real cause of the perpetual reappearance of crime among civilised races, namely atavism."

Having established this principle, Lombroso proceeds to trace the atavism of criminality in children. He shows that just as the human embryo passes through all forms of lower lives, so men and women in their infancy exactly reproduce the moral type of savages. Ungovernable rage, revengeful instincts, jealousy, envy, lying, stealing, cruelty, laziness, vanity, sexual proclivities, imperfect family affections, a general bluntness of the ethical sense, are common qualities of children, which the parent and the teacher strive to control or to eradicate by training. "The child, considered as a

human being devoid of moral sense, presents a perfect picture of what doctors call moral insanity, and I prefer to classify as inborn crime" (p. 97). "All species of anomalous sexual appetite, with the exception of those dependent upon senile decadence, make their appearance in childhood, together with the other criminal tendencies" (p. 117).

Lombroso arrives, then, at the conclusion that what civilised humanity calls crime and punishes, is the law of nature in brutes, persists as a normal condition among savages, and displays itself in the habits and instincts of children. The moral instinct is therefore slowly elaborated out of crime in the course of generations by whole races, and in the course of infancy and adolescence in the individual. The habitual criminal, who remains a criminal in his maturity, in whom crime is inborn and ineradicable, who cannot develop a moral sense, he explains at first by atavism. A large section of his volume (pp. 124-136, 137-253) is devoted to anthropometrical observations upon the physical structure, the cranial and cerebral development, and the physiognomy of such criminals. Into this part of his work we need not enter. Nor is it necessary to follow his interesting researches in the biology and psychology of "born criminals"—chapters on tattooing, ways of thinking and feeling, passions, tendencies to suicide, religious sentiment, intelligence and culture, capacity of self-control, liability to relapse, and so forth. Many curious facts relating to sexual inversion are treated in the course of these enquiries; and one passage describing the general characteristics of pæderasts (p. 376) ought to be alluded to. Considering this subject solely as a phase of crime, Lombroso reveals a superficial conception of its perplexity.

It is more important to reflect upon his theory of crime in general. Having started with the hypothesis of atavism, and adopted the term "born criminal," he later on identifies "innate crime" with "moral insanity," and illustrates both by the phenomena of epilepsy.^[39] This introduces a certain confusion and incoherence into his speculative system; for he frankly admits that he has only gradually and tardily been led to recognise the identity of what is called crime and what is called moral insanity. Criminal atavism might be defined as the sporadic reversion to savagery in certain individuals. It has nothing logically to connect it with distortion or disease—unless we assume that all our savage ancestors were malformed or diseased, and that the Greeks, in whom one form of Lombroso's criminal

atavism became established, were as a nation morally insane. The appearance of structural defects in habitual criminals points less to atavistic reversion than to radical divergence from the normal type of humanity. In like manner the invocation of heredity as a principle (p. 135) involves a similar confusion. Hereditary taint is a thing different not in degree but in kind from savage atavism prolonged from childhood into manhood.

Be this as it may, whether we regard offenders against law and ethic as "born criminals," or as "morally insane," or whether we transcend the distinction implied in these two terms, Lombroso maintains that there is no good in trying to deal with them by punishment. They ought to be treated with life-long sequestration in asylums (p. 135), and rigidly forbidden to perpetuate the species. That is the conclusion to which the whole of his long argument is carried. He contends that the prevalent juristic conception of crime rests upon ignorance of nature, brute-life, savagery, and the gradual emergence of morality. So radical a revolution in ideas, which gives new meaning to the words sin and conscience, which removes moral responsibility, and which substitutes the anthropologist and the physician for the judge and jury, cannot be carried out, even by its fervent apostle, without some want of severe logic. Thus we find Lombroso frequently drawing distinctions between "habitual" or "born" criminals and what he calls "occasional" criminals, without explaining the phenomenon of "occasional crime," and saying how he thinks this ought to be regarded by society. Moreover, he almost wholly ignores the possibility of correcting criminal tendencies by appeal to reason, by establishing habits of self-restraint, and by the employment of such means as hypnotic suggestion.^[40] Yet experience and the common practice of the world prove that these remedies are not wholly inefficacious; and indeed the passage from childish savagery to moralised manhood, on which he lays so great a stress, is daily effected by the employment of such measures in combination with the fear of punishment and the desire to win esteem.

The final word upon Lombroso's book is this: Having started with the natural history of crime, as a prime constituent in nature and humanity, which only becomes crime through the development of social morality, and which survives atavistically in persons ill adapted to their civilised environment, he suddenly turns round and identifies the crime thus analysed with morbid nerve-conditions, malformations and moral insanity. Logically,

it is impossible to effect this coalition of two radically different conceptions. If crime was not crime but nature in the earlier stages, and only appeared as crime under the conditions of advancing culture, its manifestation as a survival in certain individuals ought to be referred to nature, and cannot be relegated to the category of physical or mental disease. Savages are savages, but not lunatics or epileptics.

NOTE TO THE FOREGOING SECTION.

At the close of this enquiry into medical theories of sexual inversion, all of which assume that the phenomenon is morbid, it may not be superfluous to append the protest of an Urning against that solution of the problem. I translate it from the original document published by Krafft-Ebing (pp. 216-219). He says that the writer is "a man of high position in London"; but whether the communication was made in German or in English, does not appear.

"You have no conception what sustained and difficult struggles we all of us (the thoughtful and refined among us most of all) have to carry on, and how terribly we are forced to suffer under the false opinions which still prevail regarding us and our so-called immorality.

"Your view that, in most cases, the phenomenon in question has to be ascribed to congenital morbidity, offers perhaps the easiest way of overcoming popular prejudices, and awakening sympathy instead of horror and contempt for us poor 'afflicted' creatures.

"Still, while I believe that this view is the most favourable for us in the present state of things, I am unable in the interest of science to accept the term *morbid* without qualification, and venture to suggest some further distinctions bearing on the central difficulties of the problem.

"The phenomenon is certainly anomalous; but the term *morbid* carries a meaning which seems to me inapplicable to the subject, or at all events to very many cases which have come under my cognisance. I will concede *à priori* that a far larger proportion of mental disturbance, nervous hypersensibility, &c., can be proved in Urnings than in normal men. But ought this excess of nervous erethism to be referred necessarily to the peculiar nature of the Urning? Is not this the true explanation, in a vast majority of

cases, that the Urning, owing to present laws and social prejudices, cannot like other men obtain a simple and easy satisfaction of his inborn sexual desires?

"To begin with the years of boyhood: an Urning, when he first becomes aware of sexual stirrings in his nature, and innocently speaks about them to his comrades, soon finds that he is unintelligible. So he wraps himself within his own thoughts. Or should he attempt to tell a teacher or his parents about these feelings, the inclination, which for him is as natural as swimming to a fish, will be treated by them as corrupt and sinful; he is exhorted at any cost to overcome and trample on it. Then there begins in him a hidden conflict, a forcible suppression of the sexual impulse; and in proportion as the natural satisfaction of his craving is denied, fancy works with still more lively efforts, conjuring up those seductive pictures which he would fain expel from his imagination. The more energetic is the youth who has to fight this inner battle, the more seriously must his whole nervous system suffer from it. It is this forcible suppression of an instinct so deeply rooted in our nature, it is this, in my humble opinion, which first originates the morbid symptoms, that may often be observed in Urnings. But such consequences have nothing in themselves to do with the sexual inversion proper to the Urning.

"Well then; some persons prolong this never-ending inner conflict, and ruin their constitutions in course of time; others arrive eventually at the conviction that an inborn impulse, which exists in them so powerfully, cannot possibly be sinful—so they abandon the impossible task of suppressing it. But just at this point begins in real earnest the Iliad of their sufferings and constant nervous excitations. The normal man, if he looks for means to satisfy his sexual inclinations, knows always where to find that without trouble. Not so the Urning. He sees the men who attract him; he dares not utter, nay, dares not even let it be perceived, what stirs him. He imagines that he alone of all the people in the world is the subject of emotions so eccentric. Naturally, he cultivates the society of young men, but does not venture to confide in them. So at last he is driven to seek some relief in himself, some makeshift for the satisfaction he cannot obtain. This results in masturbation, probably excessive, with its usual pernicious consequences to health. When, after the lapse of a certain time, his nervous system is gravely compromised, this morbid phenomenon ought not to be

ascribed to sexual inversion in itself; far rather we have to regard it as the logical issue of the Urning's position, driven as he is by dominant opinion to forego the gratification which *for him* is natural and normal, and to betake himself to onanism.

"But let us now suppose that the Urning has enjoyed the exceptional good-fortune of finding upon his path in life a soul who feels the same as he does, or else that he has been early introduced by some initiated friend into the circles of the Urning-world. In this case, it is possible that he will have escaped many painful conflicts; yet a long series of exciting cares and anxieties attend on every step he takes. He knows indeed now that he is by no means the only individual in the world who harbours these abnormal emotions; he opens his eyes, and marvels to discover how numerous are his comrades in all social spheres and every class of industry; he also soon perceives that Urnings, no less than normal men and women, have developed prostitution, and that male strumpets can be bought for money just as easily as females. Accordingly, there is no longer any difficulty for him in gratifying his sexual impulse. But how differently do things develop themselves in his case! How far less fortunate is he than normal man!

"Let us assume the luckiest case that can befall him. The sympathetic friend, for whom he has been sighing all his life, is found. Yet he cannot openly give himself up to this connection, as a young fellow does with the girl he loves. Both of the comrades are continually forced to hide their *liaison*; their anxiety on this point is incessant; anything like an excessive intimacy, which could arouse suspicion (especially when they are not of the same age, or do not belong to the same class in society), has to be concealed from the external world. In this way, the very commencement of the relation sets a whole chain of exciting incidents in motion: and the dread lest the secret should be betrayed or divined, prevents the unfortunate lover from ever arriving at a simple happiness. Trifling circumstances, which would have no importance for another sort of man, make him tremble: lest suspicion should awake, his secret be discovered, and he become a social outcast, lose his official appointment, be excluded from his profession. Is it conceivable that this incessant anxiety and care should pass over him without a trace, and not react upon his nervous system?

"Another individual, less lucky, has not found a sympathetic comrade, but has fallen into the hands of some pretty fellow, who at the outset readily responded to his wishes, till he drew the very deepest secret of his nature forth. At that point the subtlest methods of blackmailing begin to be employed. The miserable persecuted wretch, placed between the alternative of paying money down or of becoming socially impossible, losing a valued position, seeing dishonour bursting upon himself and family, pays, and still the more he pays, the greedier becomes the vampire who sucks his life-blood, until at last there lies nothing else before him except total financial ruin or disgrace. Who will be astonished if the nerves of an individual in this position are not equal to the horrid strain?

"In some cases the nerves give way altogether: mental alienation sets in; at last the wretch finds in a madhouse that repose which life would not afford him. Others terminate their unendurable situation by the desperate act of suicide. How many unexplained cases of suicide in young men ought to be ascribed to this cause!

"I do not think I am far wrong when I maintain that at least half of the suicides of young men are due to this one circumstance. Even in cases where no merciless blackmailer persecutes the Urning, but a connection has existed which lasted satisfactorily on both sides, still in these cases even discovery, or the dread of discovery, leads only too often to suicide. How many officers, who have had connection with their subordinates, how many soldiers, who have lived in such relation with a comrade, when they thought they were about to be discovered, have put a bullet through their brains to avoid the coming disgrace! And the same thing might be said about all the other callings in life.

"In consequence of all this, it seems clear that if, as a matter of fact, mental abnormalities and real disturbances of the intellect are commoner with Urnings than in the case of other men, this does not establish an inevitable connection between the mental eccentricity and the Urning's specific temperament, or prove that the latter causes the former. According to my firm conviction, mental disturbances and morbid symptoms which may be observed in Urnings ought in the large majority of instances not to be referred to their sexual anomaly; the real fact is that they are educed in them by the prevalent false theory of sexual inversion, together with the

legislation in force against Urnings and the reigning tone of public opinion. It is only one who has some approximate notion of the mental and moral sufferings, of the anxieties and perturbations, to which an Urning is exposed, who knows the never-ending hypocrisies and concealments he must practise in order to cloak his indwelling inclination, who comprehends the infinite difficulties which oppose the natural satisfaction of his sexual desire—it is only such a one, I say, who is able properly to wonder at the comparative rarity of mental aberrations and nervous ailments in the class of Urnings. The larger proportion of these morbid circumstances would certainly not be developed if the Urning, like the normal man, could obtain a simple and facile gratification of his sexual appetite, and if he were not everlastingly exposed to the torturing anxieties I have attempted to describe."

This is powerfully and temperately written. It confirms what I have attempted to establish while criticising the medical hypothesis; and raises the further question whether the phenomenon of sexual inversion ought not to be approached from the point of view of embryology rather than of psychical pathology. In other words, is not the true Urning to be regarded as a person born with sexual instincts improperly correlated to his sexual organs? This he can be without any inherited or latent morbidity; and the nervous anomalies discovered in him when he falls at last beneath the observation of physicians, may be not the evidence of an originally tainted constitution, but the consequence of unnatural conditions to which he has been exposed from the age of puberty.

VI.

LITERATURE—HISTORICAL, ANTHROPOLOGICAL.

No one has yet attempted a complete history of inverted sexuality in all ages and in all races. This would be well worth doing. Materials, though not extremely plentiful, lie to hand in the religious books and codes of ancient

nations, in mythology and poetry and literature, in narratives of travel, and the reports of observant explorers.

Gibbon once suggested that: "A curious dissertation might be formed on the introduction of pæderasty after the time of Homer, its progress among the Greeks of Asia and Europe, the vehemence of their passions, and the thin device of virtue and friendship which amused the philosophers of Athens. But," adds the prurient prude, "Scelera ostendi oportet dum puniunter, abscondi flagitia."

Two scholars responded to this call. The result is that the chapter on Greek love has been very fairly written by equally impartial, equally learned, and independent authors, who approached the subject from somewhat different points of view, but who arrived in the main at similar conclusions.

The first of these histories is M. H. E. Meier's article on *Pæderastie* in Ersch and Gruber's "Allgemeine Encyklopädie:" Leipzig, Brockhaus, 1837.

The second is a treatise entitled "A Problem in Greek Ethics," composed by an Englishman in English. The anonymous author was not acquainted with Meier's article before he wrote, and only came across it long after he had printed his own essay. This work is extremely rare, ten copies only having been impressed for private use.

Enquirers into the psychology and morality of sexual inversion should not fail to study one or other of these treatises. It will surprise many a well-read scholar, when he sees the whole list of Greek authorities and passages collected and co-ordinated, to find how thoroughly the manners and the literature of that great people were penetrated with pæderastia. The myths and heroic legends of prehistoric Hellas, the educational institutions of the Dorian state, the dialogues of Plato, the history of the Theban army, the biographies of innumerable eminent citizens—lawgivers and thinkers, governors and generals, founders of colonies and philosophers, poets and sculptors—render it impossible to maintain that this passion was either a degraded vice or a form of inherited neuropathy in the race to whom we owe so much of our intellectual heritage. Having surveyed the picture, we may turn aside to wonder whether modern European nations, imbued with the opinions I have described above in the section on Vulgar Errors, are wise in making Greek literature a staple of the higher education. Their

motto is *Érasez l'infâme!* Here the infamous thing clothes itself like an angel of light, and raises its forehead unabashed to heaven among the marble peristyles and olive-groves of an unrivalled civilization.

Another book, written from a medical point of view, is valuable upon the pathology of sexual inversion and cognate aberrations among the nations of antiquity. It bears the title "Geschichte der Lustseuche im Alterthume," and is composed by Dr. Julius Rosenbaum.^[41] Rosenbaum attempts to solve the problem of the existence of syphilis and other venereal diseases in the remote past. This enquiry leads him to investigate the whole of Greek and Latin literature in its bearing upon sexual vice. Students will therefore expect from his pages no profound psychological speculations and no idealistic presentation of an eminently repulsive subject. One of the most interesting chapters of his work is devoted to what Herodotus called Νοῦσος φήλεια among the Scythians, a wide-spread effemination prevailing in a wild warlike and nomadic race. We have already alluded to Krafft-Ebing's remarks on this disease, which has curious points of resemblance with some of the facts of male prostitution in modern cities.^[42]

Professed anthropologists have dealt with the subject, collecting evidence from many quarters, and in some cases attempting to draw general conclusions. Bastian's "Der Mensch der Geschichte"^[43] and Herbert Spencer's Tables deserve special mention for their encyclopædic fulness of information regarding the distribution of abnormal sexuality and the customs of savage tribes.

In England an Essay appended to the last volume of Sir Richard Burton's "Arabian Nights" made a considerable stir upon its first appearance.^[44] The author endeavoured to co-ordinate a large amount of miscellaneous matter, and to frame a general theory regarding the origin and prevalence of homosexual passions. His erudition, however, is incomplete; and though he possesses a copious store of anthropological details, he is not at the proper point of view for discussing the topic philosophically.^[45] For example, he takes for granted that "Pederasty," as he calls it, is everywhere and always what the vulgar think it. He seems to have no notion of the complicated psychology of Urnings, revealed to us by their recently published confessions in French and German medical and legal works. Still his views deserve consideration.

Burton regards the phenomenon as "geographical and climatic, not racial." He summarises the result of his investigations in the following five conclusions.^[46]

"(1) There exists what I shall call a 'Sotadic Zone,' bounded westwards by the northern shores of the Mediterranean (N. lat. 43°) and by the southern (N. lat. 30°). Thus the depth would be 780 to 800 miles, including meridional France, the Iberian Peninsula, Italy and Greece, with the coast-regions of Africa from Morocco to Egypt.

"(2) Running eastward the Sotadic Zone narrows, embracing Asia Minor, Mesopotamia and Chaldæa, Afghanistan, Sind, the Punjab, and Kashmir.

"(3) In Indo-China the belt begins to broaden, enfolding China, Japan, and Turkistan.

"(4) It then embraces the South Sea Islands and the New World, where, at the time of its discovery, Sotadic love was, with some exceptions, an established racial institution.

"(5) Within the Sotadic Zone the vice is popular and endemic, held at the worst to be a mere peccadillo, whilst the races to the North and South of the limits here defined practise it only sporadically, amid the opprobrium of their fellows, who, as a rule, are physically incapable of performing the operation, and look upon it with the liveliest disgust."

This is a curious and interesting generalisation, though it does not account for what history has transmitted regarding the customs of the Kelts, Scythians, Bulgars, Tartars, Normans, and for the acknowledged leniency of modern Slavs to this form of vice.

Burton advances an explanation of its origin. "The only physical cause for the practice which suggests itself to me, and that must be owned to be purely conjectural, is that within the Sotadic Zone there is a blending of the masculine and feminine temperament, a crisis which elsewhere occurs only sporadically."^[47] So far as it goes, this suggestion rests upon ground admitted to be empirically sound by the medical writers we have already examined, and vehemently declared to be indisputable as a fact of physiology by Ulrichs, whom I shall presently introduce to my readers. But Burton makes no effort to account for the occurrence of this crisis of

masculine and feminine temperaments in the Sotadic Zone at large, and for its sporadic appearance in other regions. Would it not be more philosophical to conjecture that the crisis, if that exists at all, takes place universally; but that the consequences are only tolerated in certain parts of the globe, which he defines as the Sotadic Zone? Ancient Greece and Rome permitted them. Modern Greece and Italy have excluded them to the same extent as Northern European nations. North and South America, before the Conquest, saw no harm in them. Since its colonisation by Europeans they have been discountenanced. The phenomenon cannot therefore be regarded as specifically geographical and climatic. Besides, there is one fact mentioned by Burton which ought to make him doubt his geographical theory. He says that, after the conquest of Algiers, the French troops were infected to an enormous extent by the habits they had acquired there, and from them it spread so far and wide into civilian society that "the vice may be said to have been democratised in cities and large towns."^[48] This surely proves that north of the Sotadic Zone males are neither physically incapable of the acts involved in abnormal passion, nor gifted with an insuperable disgust for them. Law, and the public opinion generated by law and religious teaching, have been deterrent causes in those regions. The problem is therefore not geographical and climatic, but social. Again, may it not be suggested that the absence of "the Vice" among the negroes and negroid races of South Africa, noticed by Burton,^[49] is due to their excellent customs of sexual initiation and education at the age of puberty—customs which it is the shame of modern civilisation to have left unimitated?

However this may be, Burton regards the instinct as natural, not *contre nature*, and says that its patients "deserve, not prosecution but the pitiful care of the physician and the study of the psychologist."^[50]

Another distinguished anthropologist, Paolo Mantegazza, has devoted special attention to the physiology and psychology of what he calls "I pervertimenti dell'amore."^[51] Starting with the vulgar error that all sexual inversion implies the unmentionable act of coition (for which, by the way, he is severely rebuked by Krafft-Ebing, *Psy. Sex.*, p. 92), he explains anomalous passions by supposing that the nerves of pleasurable sensation, which ought to be carried to the genital organs, are in some cases carried to the rectum.^[52] This malformation makes its subject desire *coitum per anum*. That an intimate connection exists between the nerves of the reproductive

organs and the nerves of the rectum is known to anatomists and is felt by everybody. Probably some *cinædi* are excited voluptuously in the mode suggested. Seneca, in his Epistles, records such cases; and it is difficult in any other way to account for the transports felt by male prostitutes of the Weibling type. Finally, writers upon female prostitution mention women who are incapable of deriving pleasure from any sexual act except *aversa venus*.

Mantegazza's observation deserves to be remembered, and ought to be tested by investigation. But, it is obvious, he pushes the corollary he draws from it, as to the prevalence of sexual inversion, too far.

He distinguishes three classes of sodomy: (1) Perpheric or anatomical, caused by an unusual distribution of the nerves passing from the spine to the reproductive organs and the rectum; (2) psychical, which he describes as "specific to intelligent men, cultivated, and frequently neurotic," but which he does not attempt to elucidate, though he calls it "not a vice, but a passion"; (3) luxurious or lustful, when the *aversa venus* is deliberately chosen on account of what Mantegazza terms "la desolante larghezza" of the female.^[53]

Mantegazza winds up, like Burton, by observing that "sodomy, studied with the pitying and indulgent eye of the physician and the physiologist, is consequently a disease which claims to be cured, and can in many cases be cured."^[54]

After perusing what physicians, historians, and anthropologists have to say about sexual inversion, there is good reason for us to feel uneasy as to the present condition of our laws. And yet it might be argued that anomalous desires are not always maladies, not always congenital, not always psychical passions. In some cases they must surely be vices deliberately adopted out of lustfulness, wanton curiosity, and seeking after sensual refinements. The difficult question still remains then—how to repress vice, without acting unjustly toward the naturally abnormal, the unfortunate, and the irresponsible.

I pass now to the polemical writings of a man who maintains that homosexual passions, even in their vicious aspects, ought not to be punished

except in the same degree and under the same conditions as the normal passions of the majority.

VII.

LITERATURE—POLEMICAL.

It can hardly be said that inverted sexuality received a serious and sympathetic treatment until a German jurist, named Karl Heinrich Ulrichs, began his long warfare against what he considered to be prejudice and ignorance upon a topic of the greatest moment to himself. A native of Hanover, and writing at first under the assumed name of Numa Numantius, he kept pouring out a series of polemical, analytical, theoretical, and apologetical pamphlets between the years 1864 and 1870. The most important of these works is a lengthy and comprehensive Essay entitled "*Memnon. Die Geschlechtsnatur des mannliebenden Urnings. Eine naturwissenschaftliche Darstellung.* Schleiz, 1868." *Memnon* may be used as the text-book of its author's theories; but it is also necessary to study earlier and later treatises—*Inclusa*, *Formatrix*, *Vindex*, *Ara Spei*, *Gladius Furens*, *Incubus*, *Argonauticus*, *Prometheus*, *Araxes*, *Kritische Pfeile*—in order to obtain a complete knowledge of his opinions, and to master the whole mass of information he has brought together.

The object of Ulrichs in these miscellaneous writings is twofold. He seeks to establish a theory of sexual inversion upon the basis of natural science, proving that abnormal instincts are inborn and healthy in a considerable percentage of human beings; that they do not owe their origin to bad habits of any kind, to hereditary disease, or to wilful depravity; that they are incapable in the majority of cases of being extirpated or converted into normal channels; and that the men subject to them are neither physically, intellectually, nor morally inferior to normally constituted individuals. Having demonstrated these points to his own satisfaction, and supported his views with a large induction of instances and a respectable show of erudition, he proceeds to argue that the present state of the law in many

states of Europe is flagrantly unjust to a class of innocent persons, who may indeed be regarded as unfortunate and inconvenient, but who are guilty of nothing which deserves reprobation and punishment. In this second and polemical branch of his exposition, Ulrichs assumes, for his juristic starting-point, that each human being is born with natural rights which legislation ought not to infringe but protect. He does not attempt to confute the utilitarian theory of jurisprudence, which regards laws as regulations made by the majority in the supposed interests of society. Yet a large amount of his reasoning is designed to invalidate utilitarian arguments in favour of repression, by showing that no social evil ensues in those countries which have placed abnormal sexuality upon the same footing as the normal, and that the toleration of inverted passion threatens no danger to the well-being of nations.

After this prelude, an abstract of Ulrichs' theory and his pleading may be given, deduced from the comparative study of his numerous essays.

The right key to the solution of the problem is to be found in physiology, in that obscure department of natural science which deals with the evolution of sex. The embryo, as we are now aware, contains an undetermined element of sex during the first months of pregnancy. This is gradually worked up into male and female organs of procreation; and these, when the age of puberty arrives, are generally accompanied by corresponding male and female appetites. That is to say, the man in an immense majority of cases desires the woman, and the woman desires the man. Nature, so to speak, aims at differentiating the undecided fœtus into a human being of one or the other sex, the propagation of the species being the main object of life. Still, as Aristotle puts it, and as we observe in many of her operations, "Nature wishes, but has not always the power": ἡ φύσις Βούλεται μὲν ἀλλ' οὐ δύναται. Consequently in respect of physical structure, there come to light imperfect individuals, so-called hermaphrodites, whose sexual apparatus is so far undetermined that many a real male has passed a portion of his life under a mistake, has worn female clothes, and has cohabited by preference with men. Likewise, in respect of spiritual nature, there appear males who, notwithstanding their marked masculine organisation, feel from the earliest childhood a sexual proclivity toward men, with a corresponding indifference for women. In some of these abnormal, but natural, beings, the appetite for men resembles the normal appetite of men for women; in others

it resembles the normal appetite of women for men. That is to say, some prefer effeminate males, dressed in feminine clothes and addicted to female occupations. Others prefer powerful adults of an ultra-masculine stamp. A third class manifest their predilection for healthy young men in the bloom of adolescence, between nineteen and twenty. The attitude of such persons towards women also varies. In genuine cases of inborn sexual inversion a positive horror is felt when the woman has to be carnally known; and this horror is of the same sort as that which normal men experience when they think of cohabitation with a male.^[55] In others the disinclination does not amount to repugnance; but the abnormal man finds considerable difficulty in stimulating himself to the sexual act with females, and derives a very imperfect satisfaction from the same. A certain type of man, in the last place, seems to be indifferent, desiring males at one time and females at another.

In order to gain clearness in his exposition, Ulrichs has invented names for these several species. The so-called hermaphrodite he dismisses with the German designation of *Zwitter*. Imperfect individuals of this type are not to be considered, because it is well known that the male or female organs are never developed in one and the same body. It is also, as we shall presently discover, an essential part of his theory to regard the problem of inversion psychologically.

The normal man he calls *Dioning*, the abnormal man *Urning*. Among Urnings, those who prefer effeminate males are christened by the name of *Mannling*; those who prefer powerful and masculine adults receive the name of *Weibling*; the Urning who cares for adolescents is styled a *Zwischen-Urning*. Men who seemed to be indifferently attracted by both sexes, he calls *Uranodioninge*. A genuine Dioning, who, from lack of women, or under the influence of special circumstances, consorts with persons of his own sex, is denominated *Uraniaster*. A genuine Urning, who has put restraint upon his inborn impulse, who has forced himself to cohabit with women, or has perhaps contracted marriage, is said to be *Virilisirt*—a virilised Urning.

These outlandish names, though seemingly pedantic and superfluous, have their technical value, and are necessary to the understanding of Ulrichs' system. He is dealing exclusively with individuals classified by common

parlance as males without distinction. Ulrichs believes that he can establish a real natural division between men proper, whom he calls *Dioninge*, and males of an anomalous sexual development, whom he calls *Urninge*. Having proceeded so far, he finds the necessity of distinguishing three broad types of the Urning, and of making out the crosses between Urning and Dioning, of which he also find three species. It will appear in the sequel that whatever may be thought about his psychological hypothesis, the nomenclature he has adopted is useful in discussion, and corresponds to well-defined phenomena, of which we have abundant information. The following table will make his analysis sufficiently plain:—

The Human Male	(1) Man or Dioning ...	Uraniaster, when he has acquired the tastes of the Urning.
	(2) Urning.....	Mannling. Weibling. Zwischen-Urning. Virilised Urning.
	(3) Uranodioning.	
	(3) Hermaphrodite.	

Broadly speaking, the male includes two main species: Dioning and Urning, men with normal and men with abnormal instincts. What, then, constitutes the distinction between them? How are we justified in regarding them as radically divergent?

Ulrichs replies that the phenomenon of sexual inversion is to be explained by physiology, and particularly by the evolution of the embryo.^[56] Nature fails to complete her work regularly and in every instance. Having succeeded in differentiating a male with full-formed sexual organs from the undecided fœtus, she does not always effect the proper differentiation of that portion of the psychical being in which resides the sexual appetite. There remains a female soul in a male body. *Anima muliebris virili corpore inclusa*, is the formula adopted by Ulrichs; and he quotes a passage from the "Vestiges of Creation," which suggests that a male is a more advanced product of sexual evolution than the female. The male instinct of sex is a more advanced product than the female instinct. Consequently men appear whose body has been differentiated as masculine, but whose sexual instinct has not progressed beyond the feminine stage.

Ulrichs' own words ought to be cited upon this fundamental part of his hypothesis, since he does not adopt the opinion that the Urning is a Dioning arrested at a certain point of development; but rather that there is an element of uncertainty attending the simultaneous evolution of physical and psychical factors from the indeterminate ground-stuff. "Sex," says he, "is only an affair of development. Up to a certain stage of embryonic existence all living mammals are hermaphroditic. A certain number of them advance to the condition of what I call man (Doining), others to what I call woman (Dioningin), a third class become what I call *Urning* (including *Urningin*). It ensues therefrom that between these three sexes there are no primary, but only secondary differences. And yet true differences, constituting sexual species, exist as facts."^[57] Man, Woman, and Urning—the third being either a male or a female in whom we observe a real and inborn, not an acquired or a spurious, inversion of appetite—are consequently regarded by him as the three main divisions of humanity viewed from the point of view of sex. The embryonic ground-stuff in the case of each was homologous; but while the two former, Man and Woman, have been normally differentiated, the Urning's sexual instinct, owing to some imperfection in the process of development, does not correspond to his or her sexual organs.

The line of division between the sexes, even in adult life, is a subtle one; and the physical structure of men and women yields indubitable signs of their emergence from a common ground-stuff. Perfect men have rudimentary breasts. Perfect women carry a rudimentary penis in their clitoris. The raphé of the scrotum shows where the aperture, common at first to masculine and feminine beings, but afterwards only retained in the female vulva, was closed up to form a male. Other anatomical details of the same sort might be adduced. But these will suffice to make thinking persons reflect upon the mysterious dubiety of what we call sex. That gradual development, which ends in normal differentiation, goes on very slowly. It is only at the age of puberty that a boy distinguishes himself abruptly from a girl, by changing his voice and growing hair on parts of the body where it is not usually found in women. This being so, it is surely not surprising that the sexual appetite should sometimes fail to be normally determined, or in other words should be inverted.

Ulrichs maintains that the body of an Urning is masculine, his soul feminine, so far as sex is concerned. Accordingly, though physically unfitted

for coition with men, he is imperatively drawn towards them by a natural impulse. Opponents meet him with this objection: "Your position is untenable. Body and soul constitute one inseparable entity." So they do, replies Ulrichs; but the way in which these factors of the person are combined in human beings differs extremely, as I can prove by indisputable facts. The body of a male is visible to the eyes, is mensurable and ponderable, is clearly marked in its specific organs. But what we call his soul—his passions, inclinations, sensibilities, emotional characteristics, sexual desires—eludes the observation of the senses. This second factor, like the first, existed in the undetermined stages of the fœtus. And when I find that the soul, this element of instinct and emotion and desire existing in a male, had been directed in its sexual appetite from earliest boyhood towards persons of the male sex, I have the right to qualify it with the attribute of femininity. You assume that soul-sex is indissolubly connected and inevitably derived from body-sex. The facts contradict you, as I can prove by referring to the veracious autobiographies of Urnings and to known phenomena regarding them.

Such is the theory of Ulrichs; and though we may not incline to his peculiar mode of explaining the want of harmony between sexual organs and sexual appetite in Urnings, there can be no doubt that in some way or other their eccentric diathesis must be referred to the obscure process of sexual differentiation.^[58] Perhaps he antedates the moment at which the aberration sometimes takes its origin, not accounting sufficiently for imperative impressions made on the imagination or the senses of boys during the years which precede puberty.

However this may be, the tendency to such inversion is certainly inborn in an extremely large percentage of cases. That can be demonstrated from the reports of persons whose instincts were directed to the male before they knew what sex meant. It is worth extracting passages from these confessions.^[59] (1) "As a schoolboy of eight years, I sat near a comrade rather older than myself; and how happy was I, when he touched me. That was the first indefinite perception of an inclination which remained a secret for me till my nineteenth year." (2) "Going back to my seventh year, I had a lively feeling for a schoolfellow, two years older than myself; I was happy when I could be as close as possible to him, and in our games could place my head near to his private parts." (3) "At ten years of age he had a

romantic attachment for a comrade; and the passion for people of his own sex became always more and more marked." (4) Another confessed that "already at the age of four he used to dream of handsome grooms." (5) A fifth said: "My passion for people of my own sex awoke at the age of eight. I used to enjoy my brother's nakedness; while bathing with other children, I took no interest at all in girls, but felt the liveliest attraction toward boys." (6) A sixth dates his experience from his sixth or seventh year. (7) A seventh remembers that "while yet a boy, before the age of puberty, sleeping in the company of a male agitated him to such an extent that he lay for hours awake." (8) An eighth relates that "while three years old, I got possession of a fashion book, cut out the pictures of men, and kissed them to tatters. The pictures of women I did not care to look at." (9) A ninth goes back to his thirteenth year, and a school friendship. (10) A tenth records the same about his seventh year. (11) An eleventh says that his inverted instincts awoke in early childhood, and that from his ninth year onward he fell over and over again in love with adult men. (12) A twelfth spoke as follows: "So far back as I can remember, I was always subject to this passion. Quite as a child, young men made deeper impression on me than women or girls. The earliest sensual perturbation of which I have any recollection was excited by a tutor, when I was nine or ten, and my greatest pleasure was to be allowed to ride astride upon his leg." (13) A thirteenth: "From the earliest childhood I have been haunted by visions of men, and only of men; never has a woman exercised the least influence over me. At school I kept these instincts to myself, and lived quite retired." (14) A fourteenth can recollect "receiving a distinctly sensual impression at the age of four, when the man-servants caressed him." (15) A fifteenth says that at the age of thirteen, together with puberty, the inversion of appetite awoke in him. (16) A sixteenth confesses that he felt an unconquerable desire for soldiers in his thirteenth year. (17) A seventeenth remembers having always dreamed only of men; and at school, he says, "when my comrades looked at pretty girls and criticised them during our daily promenades, I could not comprehend how they found anything to admire in such creatures." On the other hand, the sight and touch of soldiers and strong fellows excited him enormously. (18) An eighteenth dates the awakening of passion in him at the age of eleven, when he saw a handsome man in church; and from that time forward his instinct never altered. (19) A nineteenth fell in love with an officer at the age of thirteen, and since then always desired vigorous adult males. (20) A

twentieth confessed to have begun to love boys of his own age, sensually, while only eight years of age. (21) A twenty-first records that, when he was eight, he began to crave after the sight of naked men.

In addition to these cases a great many might be culled from the writings of Ulrichs, who has published a full account from his own early experience. [60] "I was fifteen years and ten and a half months old," he says, "when the first erotic dream announced the arrival of puberty. Never before that period had I known sexual gratification of any kind whatever. The occurrence was therefore wholly normal. From a much earlier time, however, I had been subject to emotions, partly romantic, partly sensual, without any definite desire, and never for one and the same young man. These aimless yearnings of the senses plagued me in my solitary hours, and I could not overcome them. During my fifteenth year, while at school at Detmold, the vague longing took a twofold shape. First, I came across Norman's 'Säulenordnungen,' and there I was vehemently attracted by the figure of a Greek god or hero, standing in naked beauty. Secondly, while studying in my little room, or before going to sleep, the thought used suddenly and irresistibly to rise up in my mind—If only a soldier would clamber through the window and come into my room! I then painted in my fancy the picture of a splendid soldier of twenty to twenty-two years old. And yet I had no definite idea of why I wanted him; nor had I ever come in contact with soldiers. About two years after this, I happened to sit next a soldier in a post-carriage. The contact with his thigh excited me to the highest degree." Ulrichs also relates that in his tenth year he conceived an enthusiastic and romantic friendship for a boy two years his senior.

That experiences of the kind are very common, every one who has at all conversed with Urnings knows well. From private sources of unquestionable veracity, these may be added. A relates that, before eight years old, reverie occurred to him during the day, and dreams at night, of naked sailors. When he began to study Latin and Greek, he dreamed of young gods, and at the age of fourteen, became deeply enamoured of the photograph of the Praxitelian Erôs in the Vatican. He had a great dislike for physical contact with girls; and with boys was shy and reserved, indulging in no acts of sense. B says that during his tenderest boyhood, long before the age of puberty, he fell in love with a young shepherd on one of his father's farms, for whom he was so enthusiastic that the man had to be sent to a

distant moor. *C* at the same early age, conceived a violent affection for a footman; *D* for an officer, who came to stay at his home; *E* for the bridegroom of his eldest sister.

In nearly all the cases here cited, the inverted sexual instinct sprang up spontaneously. Only a few of the autobiographies record seduction by an elder man as the origin of the affection. In none of them was it ever wholly overcome. Only five out of the twenty-seven men married. Twenty declare that, tortured by the sense of their dissimilarity to other males, haunted by shame and fear, they forced themselves to frequent public women soon after the age of puberty. Some found themselves impotent. Others succeeded in accomplishing their object with difficulty, or by means of evoking the images of men on whom their affections were set. All, except one, concur in emphatically asserting the superior attraction which men have always exercised for them over women. Women leave them, if not altogether disgusted, yet cold and indifferent. Men rouse their strongest sympathies and instincts. The one exception just alluded to is what Ulrichs would call an Uranodioning. The others are capable of friendship with women, some even of æsthetic admiration, and the tenderest regard for them, but not of genuine sexual desire. Their case is literally an inversion of the ordinary.

Some observations may be made on Ulrichs' theory. It is now recognised by the leading authorities, medical and medico-juristic, in Germany, by writers like Casper-Liman and Krafft-Ebing, that sexual inversion is more often than not innate. So far, without discussing the physiological or metaphysical explanations of this phenomenon, without considering whether Ulrichs is right in his theory of *anima muliebris inclusa in corpore virili*, or whether heredity, insanity, and similar general conditions are to be held responsible for the fact, it may be taken as admitted on all sides that the sexual diathesis in question is in a very large number of instances congenital. But Ulrichs seems to claim too much for the position he has won. He ignores the frequency of acquired habits. He shuts his eyes to the force of fashion and depravity. He reckons men like Horace and Ovid and Catullus, among the ancients, who were clearly indifferent in their tastes (as indifferent as the modern Turks) to the account of Uranodionings. In one word, he is so enthusiastic for his physiological theory that he overlooks all other aspects of the question. Nevertheless, he has acquired the right to an impartial hearing, while pleading in defence of those who are acknowledged

by all investigators of the problem to be the subjects of an inborn misplacement of the sexual appetite.

Let us turn, then, to the consideration of his arguments in favour of freeing Urnings from the terrible legal penalties to which they are at present subject, and, if this were possible, from the no less terrible social condemnation to which they are exposed by the repugnance they engender in the normally constituted majority. Dealing with these exceptions to the kindly race of men and women, these unfortunates who have no family ties knotted by bonds by mutual love, no children to expect, no reciprocity of passion to enjoy, mankind, says Ulrichs, has hitherto acted just in the same way as a herd of deer acts when it drives the sickly and the weakly out to die in solitude; burdened with contumely, and cut off from common sympathy.

From the point of view of morality and law, he argues, it does not signify whether we regard the sexual inversion of an Urning as morbid or as natural. He has become what he is in the dawn and first emergence of emotional existence. You may contend, that he derives perverted instincts from his ancestry, that he is the subject of a psychical disorder, that from the cradle he is predestined by atavism or disease to misery. I maintain that he is one of nature's sports, a creature healthy and well organised, evolved in her superb indifference to aberrations from the normal type. We need not quarrel over our solutions of the problem. The fact that he is there, among us, and that he constitutes an ever-present factor in our social system, has to be faced. How are we to deal with him? Has society the right to punish individuals sent into the world with homosexual instincts? Putting the question at its lowest point, admitting that these persons are the victims of congenital morbidity, ought they to be treated as criminals? It is established that their appetites, being innate, are *to them* at least natural and undepraved; the common appetites, being excluded from their sexual scheme, are *to them* unnatural and abhorrent. Ought not such beings, instead of being hunted down and persecuted by legal bloodhounds, to be regarded with pitying solicitude as among the most unfortunate of human beings, doomed as they are to inextinguishable longings and life-long deprivation of that which is the chief prize of man's existence on this planet, a reciprocated love? As your laws at present stand, you include all cases of sexual inversion under the one domination of crime. You make exceptions in some special instances, and treat the men involved as lunatics. But the Urning is

neither criminal nor insane. He is only less fortunate than you are, through an accident of birth, which is at present obscure to our imperfect science of sexual determination.

So far Ulrichs is justified in his pleading. When it has been admitted that sexual inversion is usually a fact of congenital diathesis, the criminal law stands in no logical relation to the phenomenon. It is monstrous to punish people as wilfully wicked because, having been born with the same organs and the same appetites as their neighbours, they are doomed to suffer under the frightful disability of not being able to use their organs or to gratify their appetites in the ordinary way.

But here arises a difficulty, which cannot be ignored, since upon it is based the only valid excuse for the position taken up by society in dealing with this matter. Not all men and women possessed by abnormal sexual desires can claim that these are innate. It is certain that the habits of sodomy are frequently acquired under conditions of exclusion from the company of persons of the other sex—as in public schools, barracks, prisons, convents, ships. In some cases they are deliberately adopted by natures tired of normal sexual pleasure. They may even become fashionable and epidemic. Lastly, it is probable that curiosity and imitation communicate them to otherwise normal individuals at a susceptible moment of development. Therefore society has the right to say: Those who are the unfortunate subjects of inborn sexual inversion shall not be allowed to indulge their passions, lest the mischief should spread, and a vicious habit should contaminate our youth. From the utilitarian point of view, society is justified in protecting itself against a minority of exceptional beings whom it regards as pernicious to the general welfare. From any point of view, the majority is strong enough to coerce to inborn instincts and to trample on the anguish of a few unfortunates. But, asks Ulrichs, is this consistent with humanity, is it consistent with the august ideal of impartial equity? Are people, sound in body, vigorous in mind, wholesome in habit, capable of generous affections, good servants of the state, trustworthy in all the ordinary relations of life, to be condemned at law as criminals because they cannot feel sexually as the majority feel, because they find some satisfaction for their inborn want in ways which the majority dislike?

Seeking a solution of the difficulty stated in the foregoing paragraph, Ulrichs finds it in fact and history. His answer is that if society leaves nature to take her course, with the abnormal as well as with the normal subjects of sexual inclination, society will not suffer. In countries where legal penalties have been removed from inverted sexuality, where this is placed upon the same footing as the normal—in France, Bavaria (?), the Netherlands (?)—no inconvenience has hitherto arisen.^[61] There has ensued no sudden and flagrant outburst of a depraved habit, no dissemination of a spreading moral poison. On the other hand, in countries where these penalties exist and are enforced—in England, for example, and in the metropolis of England, London—inverted sexuality runs riot, despite of legal prohibitions, despite of threats of prison, dread of exposure, and the intolerable pest of organised *chantage*. In the eyes of Ulrichs, society is engaged in sitting on a safety-valve, which if nature were allowed to operate unhindered would do society no harm, but rather good. The majority, he thinks, are not going to become Urnings, for the simple reason that they have not the unhappy constitution of the Urning. Cease to persecute Urnings, accept them as inconsiderable, yet real, factors, in the social commonwealth, leave them to themselves, and you will not be the worse for it, and will also not carry on your conscience the burden of intolerant vindictiveness.

Substantiating this position, Ulrichs demonstrates that acquired habits of sexual inversion are almost invariably thrown off by normal natures. Your boys at public schools, he says, behave as though they were Urnings. In the lack of women, at the time when their passions are predominant, they yield themselves up together to mutual indulgences which would bring your laws down with terrible effect upon adults. You are aware of this. You send your sons to Eton and to Harrow, and you know very well what goes on there. Yet you remain untroubled in your minds. And why? Because you feel convinced that they will return to their congenital instincts.

When the school, the barrack, the prison, the ship has been abandoned, the male reverts to the female. This is the truth about Dionings. The large majority of men and women remain normal, simply because they were made normal. They cannot find the satisfaction of their nature in those inverted practices to which they yielded for a time through want of normal outlet. Society risks little by the occasional caprice of the school, the barrack, the prison, and the ship. Some genuine Urnings may, indeed,

discover their inborn inclination by means of the process to which you subject them. But you are quite right in supposing that a Dioning, though you have forced him to become for a time an Uraniaster, will never in the long run appear as an Urning. The extensive experience which English people possess regarding such matters, owing to the notorious condition of their public schools, goes to confirm Ulrichs' position. Headmasters know how many Uraniasters they have dealt with, what excellent Dionings they become, and how comparatively rare, and yet how incorrigibly steadfast, are the genuine Urnings in their flock.

The upshot of this matter is that we are continually forcing our young men into conditions under which, if sexual inversion were an acquired attribute, it would become stereotyped in their natures. Yet it does not do so. Provisionally, because they are shut off from girls, because they find no other outlet for their sex at the moment of its most imperious claims, they turn toward males, and treat their younger school-fellows in ways which would consign an adult to penal servitude. They are Uraniasters by necessity and *faute de mieux*. But no sooner are they let loose upon the world than the majority revert to normal channels. They pick up women in the streets, and form connections, as the phrase goes. Some undoubtedly, in this fiery furnace through which they have been passed, discover their inborn sexual inversion. Then, when they cannot resist the ply of their proclivity, you condemn them as criminals in their later years. Is that just? Would it not be better to revert from our civilisation to the manners of the savage man—to initiate youths into the mysteries of sex, and to give each in his turn the chance of developing a normal instinct by putting him during his time of puberty freely and frankly to the female? If you abhor Urnings, as you surely do, you are at least responsible for their mishap by the extraordinary way in which you bring them up. At all events, when they develop into the eccentric beings which they are, you are the last people in the world who have any right to punish them with legal penalties and social obloquy.

Considering the present state of the law in most countries to be inequitable toward a respectable minority of citizens, Ulrichs proposes that Urnings should be placed upon the same footing as other men. That is to say, sexual relations between males and males should not be treated as criminal, unless they be attended with violence (as in the case of rape), or be carried on in

such a way as to offend the public sense of decency (in places of general resort or on the open street), or thirdly be entertained between an adult and a boy under age (the protected age to be decided as in the case of girls). What he demands is that when an adult male, freely and of his own consent, complies with the proposals of an adult person of his own sex, and their intercourse takes place with due regard for public decency, neither party shall be liable to prosecution and punishment at law. In fact he would be satisfied with the same conditions as those prevalent in France, and since June, 1889, in Italy.

If so much were conceded by the majority of normal people to the abnormal minority, continues Ulrichs, an immense amount of misery and furtive vice would be at once abolished. And it is difficult to conceive what evil results would follow. A defender of the present laws of England, Prussia, &c., might indeed reply: "This is opening a free way to the seduction and corruption of young men." But young men are surely at least as capable of defending themselves against seduction and corruption as young women are. Nay, they are far more able, not merely because they are stronger, but because they are not usually weakened by an overpowering sexual instinct on which the seducer plays. Yet the seduction and corruption of young women is tolerated, in spite of the attendant consequences of illegitimate childbirth, and all which that involves. This toleration of the seduction of women by men springs from the assumption that only the normal sexual appetite is natural. The seduction of a man by a male passes for criminal, because the inverted sexual instinct is regarded as unnatural, depraved, and wilfully perverse. On the hypothesis that individuals subject to perverted instincts can suppress them at pleasure or convert them into normal appetite, it is argued that they must be punished. But when the real facts come to be studied, it will be found: first, that these instincts are inborn in Urnings, and are therefore in their case natural; secondly, that the suppression of them is tantamount to life-long abstinence under the constant torture of sexual solicitation; thirdly, that the conversion of them into normal channels is in a large percentage of cases totally impossible, in nearly all where it has been attempted is only partially successful, and where marriage ensues has generally ended in misery for both parties. Ulrichs, it will be noticed, does not distinguish between Urnings, in whom the inversion is admitted to be congenital, and Uraniasters, in whom it has been acquired or deliberately adopted. And it would be very difficult to

frame laws which should take cognisance of these two classes. The Code Napoleon legalises the position of both, theoretically at any rate. The English code treats both as criminal, doing thereby, it must be admitted, marked injustice to recognised Urnings, who at the worst are morbid or insane, or sexually deformed, through no fault of their own.

In the present state of things, adds Ulrichs, the men who yield their bodies to abnormal lovers, do not merely do so out of compliance, sympathy, or the desire for reasonable reward. Too often they speculate upon the illegality of the connection, and have their main object in the extortion of money by threats of exposure. Thus the very basest of all trades, that of *chantage*, is encouraged by the law. Alter the law, and instead of increasing vice, you will diminish it; for a man who should then meet the advances of an Urning, would do so out of compliance, or, as is the case with female prostitutes, upon the expectation of a reasonable gain. The temptation to ply a disgraceful profession with the object of extorting money would be removed. Moreover, as regards individuals alike abnormally constituted, voluntary and mutually satisfying relations, free from degrading risks, and possibly permanent, might be formed between responsible agents. Finally, if it be feared that the removal of legal disabilities would turn the whole male population into Urnings, consider whether London is now so much purer in this respect than Paris?

One serious objection to recognising and tolerating sexual inversion has always been that it tends to check the population. This was a sound political and social argument in the time of Moses, when a small and militant tribe needed to multiply to the full extent of its procreative capacity. It is by no means so valid in our age, when the habitable portions of the globe are rapidly becoming overcrowded.^[62] Moreover, we must bear in mind that society, under the existing order, sanctions female prostitution, whereby men and women, the normally procreative, are sterilised to an indefinite extent. Logic, in these circumstances, renders it equitable and ridiculous to deny a sterile exercise of sex to abnormal men and women, who are by instinct and congenital diathesis non-procreative.

As the result of these considerations, Ulrichs concludes that there is no real ground for the persecution of Urnings except as may be found in the repugnance by the vast numerical majority for an insignificant minority. The

majority encourages matrimony, condones seduction, sanctions prostitution, legalises divorce in the interests of its own sexual proclivities. It makes temporary or permanent unions illegal for the minority whose inversion of instinct it abhors. And this persecution, in the popular mind at any rate, is justified, like many other inequitable acts of prejudice or ignorance, by theological assumptions and the so-called mandates of revelation.

In the next place it is objected that inversed sexuality is demoralising to the manhood of a nation, that it degrades the dignity of a man, and that it is incapable of moral elevation. Each of these points may be taken separately. They are all of them at once and together contradicted by the history of ancient Greece. There the most warlike sections of the race, the Dorians of Crete and Sparta, and the Thebans, organised the love of male for male because of the social and military advantages they found in it. Their annals abound in eminent instances of heroic enthusiasm, patriotic devotion, and high living, inspired by homosexual passion. The fighting peoples of the world, Kelts in ancient story, Normans, Turks, Afghans, Albanians, Tartars, have been distinguished by the frequency among them of what popular prejudice regards as an effeminate vice.

With regard to the dignity of man, is there, asks Ulrichs, anything more degrading to humanity in sexual acts performed between male and male than in similar acts performed between male and female. In a certain sense all sex has an element of grossness which inspires repugnance. The gods, says Swinburne,

"Have strewed one marriage-bed with tears and fire,
For extreme loathing and supreme desire."

It would not be easy to maintain that a curate begetting his fourteenth baby on the body of a worn-out wife is a more elevating object of mental contemplation than Harmodius in the embrace of Aristogeiton, or that a young man sleeping with a prostitute picked up in the Haymarket is cleaner than his brother sleeping with a soldier picked up in the Park. Much of this talk about the dignity of man, says Ulrichs, proceeds from a vulgar misconception as to the nature of inverted sexual desire. People assume that Urnings seek their pleasure only or mainly in an act of unmentionable indecency. The exact opposite, he assures them, is the truth. The act in question is no commoner between men and men than it is between men and

women. Ulrichs, upon this point, may be suspected, perhaps, as an untrustworthy witness. His testimony, however, is confirmed by Krafft-Ebing, who, as we have seen, has studied sexual inversion long and minutely from the point of view of psychical pathology. "As regards the nature of their sexual gratification," he writes, "it must be established at the outset that the majority of them are contented with reciprocal embraces; the act commonly ascribed to them they generally abhor as much as normal men do; and, inasmuch as they always prefer adults, they are in no sense specially dangerous to boys."^[63] This author proceeds to draw a distinction between Urnings in whom sexual inversion is congenital, and old debauchees or half-idiotic individuals, who are in the habit of misusing boys. The vulgar have confounded two different classes; and everybody who studies the psychology of Urnings is aware that this involves a grave injustice to the latter.

"But, after all," continues the objector, "you cannot show that inverted sexuality is capable of any moral elevation." Without appealing to antiquity, the records of which confute this objection overwhelmingly, one might refer to the numerous passages in Ulrich's writings where he relates the fidelity, loyalty, self-sacrifice, and romantic enthusiasm which frequently accompany such loves, and raises them above baseness. But, since here again he may be considered a suspicious witness, it will suffice, as before, to translate a brief passage from Krafft-Ebing. "The Urning loves, idolizes his friend, quite as much as the normal man loves and idolizes his girl. He is capable of making for him the greatest sacrifices. He suffers the pangs of unhappy, often unreturned, affection; feels jealousy, mourns under the fear of his friend's infidelity."^[64] When the time comes for speaking about Walt Whitman's treatment of this topic, it will appear that the passion of a man for his comrade has been idealised in fact and deed, as well as in poetry. For the present it is enough to remark that a kind of love, however spontaneous and powerful, which is scouted, despised, tabooed, banned, punished, relegated to holes and corners, cannot be expected to show its best side to the world. The sense of sin and crime and danger, the humiliation and repression and distress to which the unfortunate pariahs of inverted sexuality are daily and hourly exposed must inevitably deteriorate the nobler elements in their emotion. Give abnormal love the same chance as normal love, subject it to the wholesome control of public opinion, allow it

to be self-respecting, draw it from dark slums into the light of day, strike off its chains and set it free—and I am confident says Ulrichs, that it will exhibit analogous virtues, checkered, of course, by analogous vices, to those with which you are familiar in the mutual love of male and female. The slave has of necessity a slavish soul. The way to elevate is to emancipate him.

"All that may be true," replies the objector: "it is even possible that society will take the hard case of your Urnings into consideration, and listen to their bitter cry. But, in the meanwhile, supposing these inverted instincts to be inborn, supposing them to be irrepressible and inconvertible, supposing them to be less dirty and nasty than they are commonly considered, is it not the plain duty of the individual to suppress them, so long as the law of his country condemns them?" No, rejoins Ulrichs, a thousand times no! It is only the ignorant antipathy of the majority which renders such law as you speak of possible. Go to the best books of medical jurisprudence, go to the best authorities on psychical deviations from the normal type. You will find that these support me in my main contention. These, though hostile in their sentiments and chilled by natural repugnance, have a respect for science, and they agree with me in saying that the Urning came into this world an Urning, and must remain till the end of his life an Urning still. To deal with him according to your code is no less monstrous than if you were to punish the colour-blind, or the deaf and dumb, or albinos, or crooked-back cripples. "Very well," answers the objector: "But I will quote the words of an eloquent living writer, and appeal to your generous instincts and your patriotism. Professor Dowden observes that 'self-surrender is at times sternly enjoined, and if the egoistic desires are brought into conflict with social duties, the individual life and joy within us, at whatever cost of personal suffering, must be sacrificed to the just claims of our fellows.'^[65] What have you to say to that?" In the first place, replies Ulrichs, I demur in this case to the phrases *egoistic desires*, *social duties*, *just claims of our fellows*. I maintain that in trying to rehabilitate men of my own stamp and to justify their natural right to toleration I am not egoistic. It is begging the question to stigmatise their inborn desire as selfish. The social duties of which you speak are not duties, but compliances to law framed in blindness and prejudice. The claims of our fellows, to which you appeal, are not just, but cruelly inequitable. My insurgence against all these things makes me act

indeed as an innovator; and I may be condemned, as a consequence of my rashness, to persecution, exile, defamation, proscription. But let me remind you that Christ was crucified, and that he is now regarded as a benefactor. "Stop," breaks in the objector: "We need not bring most sacred names into this discussion. I admit that innovators have done the greatest service to society. But you have not proved that you are working for the salvation of humanity at large. Would it not be better to remain quiet, and to sacrifice your life and joy, the life and joy of an avowed minority, for the sake of the immense majority who cannot tolerate you, and who dread your innovation? The Catholic priesthood is vowed to celibacy; and unquestionably there are some adult men in that order who have trampled out the imperious appetite of the male for the female. What they do for the sake of their vow will not you accomplish, when you have so much of good to gain, of evil to escape?" What good, what evil? rejoins Ulrichs. You are again begging the question; and now you are making appeals to my selfishness, my personal desire for tranquillity, my wish to avoid persecution and shame. I have taken no vow of celibacy. If I have taken any vow at all, it is to fight for the rights of an innocent, harmless, downtrodden group of outraged personalities. The cross of a Crusade is sewn upon the sleeve of my right arm. To expect from me and from my fellows the renouncement voluntarily undertaken by a Catholic priest is an absurdity, when we join no order, have no faith to uphold, no ecclesiastical system to support. We maintain that we have the right to exist after the fashion in which nature made us. And if we cannot alter your laws, we shall go on breaking them. You may condemn us to infamy, exile, prison—as you formerly burned witches. You may degrade our emotional instincts and drive us into vice and misery. But you will not eradicate inverted sexuality. Expel nature with a fork, and you know what happens. "That is enough," says the objector: "We had better close this conversation. I am sorry for you, sorry that you will not yield to sense and force. The Urning must be punished."

VIII.

LITERATURE—IDEALISTIC.

To speak of Walt Whitman at all in connection with Ulrichs and sexual inversion seems paradoxical. At the outset it must be definitely stated that he has nothing to do with anomalous, abnormal, vicious, or diseased forms of the emotion which males entertain for males. Yet no man in the modern world has expressed so strong a conviction that "manly attachment," "athletic love," "the high towering love of comrades," is a main factor in human life, a virtue upon which society will have to rest, and a passion equal in its permanence and intensity to sexual affection.

He assumes, without raising the question, that the love of man for man co-exists with the love of man for woman in one and the same individual. The relation of the two modes of feeling is clearly stated in this poem:—

"Fast-anchored, eternal, O love! O woman I love!
O bride! O wife! More resistless than I can tell, the thought of you
Then separate, as disembodied, or another born,
Ethereal, the last athletic reality, my consolation;
I ascend—I float in the regions of your love, O man,
O sharer of my roving life."

Neuropathical Urnings are not hinted at in any passage of his works. As his friend and commentator Mr. Burroughs puts it: "The sentiment is primitive, athletic, taking form in all manner of large and homely out-of-door images, and springs, as anyone may see, directly from the heart and experience of the poet."

This being so, Whitman never suggests that comradeship may occasion the development of physical desires. But then he does not in set terms condemn these desires, or warn his disciples against them. To a Western boy he says:

—

"If you be not silently selected by lovers, and do not silently seek lovers,
Of what use is it that you seek to become eleve of mine."

Like Plato, in the *Phædrus*, Whitman describes an enthusiastic type of masculine emotion, leaving its private details to the moral sense and special inclination of the person concerned.^[66]

The language of "Calamus" (that section of "Leaves of Grass" which is devoted to the gospel of comradeship) has a passionate glow, a warmth of emotional tone, beyond anything to which the modern world is used in the celebration of the love of friends. It recalls to our mind the early Greek

enthusiasm—that fellowship in arms which flourished among Dorian tribes, and made a chivalry for prehistoric Hellas. Nor does the poet himself appear to be unconscious that there are dangers and difficulties involved in the highly-pitched emotions he is praising. The whole tenor of two mysterious compositions, entitled "Whoever you are, Holding me now in Hand," and "Trickle, Drops," suggests an underlying sense of spiritual conflict. The following poem, again, is sufficiently significant and typical to call for literal transcription:—

"Earth, my likeness!

Though you look so impressive, ample and spheric here,
I now suspect that is not all;
I now suspect there is something fierce in you, eligible to burst forth;
For an athletic is enamoured of me—and I of him,
But toward him there is something fierce and terrible in me, eligible to burst forth,
I dare not tell it in words—not even in these songs."

The reality of Whitman's feeling, the intense delight which he derives from the personal presence and physical contact of a beloved man, find expression in "A Glimpse," "Records ages hence," "When I heard at the Close of Day," "I saw in Louisiana a Live Oak growing," "Long I thought that Knowledge alone would content me,"^[67] "O Tan-faced Prairie Boy," and "Vigil Strange I kept on the Field one Night."^[68]

It is clear, then, that in his treatment of comradeship, or the impassioned love of man for man, Whitman has struck a keynote, to the emotional intensity of which the modern world is unaccustomed. It therefore becomes of much importance to discover the poet-prophet's *Stimmung*—his radical instinct with regard to the moral quality of the feeling he encourages. Studying his works by their own light, and by the light of their author's character, interpreting each part by reference to the whole and in the spirit of the whole, an impartial critic will, I think, be drawn to the conclusion that what he calls the "adhesiveness" of comradeship is meant to have no interblending with the "amateness" of sexual love. Personally, it is undeniable that Whitman possesses a specially keen sense of the fine restraint and continence, the cleanliness and chastity, that are inseparable from the perfectly virile and physically complete nature of healthy manhood. Still, we may predicate the same ground-qualities in the early Dorians, those martial founders of the institution of Greek Love; and it is

notorious to students of Greek civilisation that the lofty sentiment of their chivalry was intertwined with singular anomalies in its historical development.

To remove all doubt about Whitman's own intentions when he composed "Calamus," and promulgated his doctrine of impassioned comradeship, I wrote to him, frankly posing the questions which perplexed my mind. The answer I received, dated Camden, New Jersey, U.S.A., August 19, 1890, and which he permits me to make use of, puts the matter beyond all debate, and confirms the conclusions to which I had been led by criticism. He writes as follows: "About the questions on 'Calamus,' &c., they quite daze me. 'Leaves of Grass' is only to be rightly construed by and within its own atmosphere and essential character—all its pages and pieces so coming strictly under. That the Calamus part has ever allowed the possibility of such construction as mentioned is terrible. I am fain to hope the pages themselves are not to be even mentioned for such gratuitous and quite at the time undreamed and unwished possibility of morbid inferences—which are disavowed by me and seem damnable."

No one who knows anything about Walt Whitman will for a moment doubt his candour and sincerity. Therefore the man who wrote "Calamus," and preached the gospel of comradeship, entertains feelings at least as hostile to sexual inversion as any law-abiding humdrum Anglo-Saxon could desire. It is obvious that he has not even taken the phenomena of abnormal instinct into account. Else he must have foreseen that, human nature being what it is, we cannot expect to eliminate all sexual alloy from emotions raised to a high pitch of passionate intensity, and that permanent elements within the midst of our society will imperil the absolute purity of the ideal he attempts to establish.

These considerations do not, however, affect the spiritual nature of that ideal. After acknowledging, what Whitman has omitted to perceive, that there are inevitable points of contact between sexual inversion and his doctrine of comradeship, the question now remains whether he has not suggested the way whereby abnormal instincts may be moralised and raised to higher value. In other words, are those instincts provided in "Calamus" with the means of their salvation from the filth and mire of brutal appetite? It is difficult to answer this question; for the issue involved is nothing less

momentous than the possibility of evoking a new chivalrous enthusiasm, analogous to that of primitive Hellenic society, from emotions which are at present classified among the turpitudes of human nature.

Let us look a little closer at the expression which Whitman has given to his own feelings about friendship. The first thing that strikes us is the mystic emblem he has chosen for masculine love. That is the water-plant, or scented rush, called Calamus, which springs in wild places, "in paths untrodden, in the growth by margins of pond-waters" He has chosen these "emblematic and capricious blades" because of their shyness, their aromatic perfume, their aloofness from the patent life of the world. He calls them "sweet leaves, pink-tinged roots, timid leaves," "scented herbage of my breast." Finally, he says:—^[69]

"Here my last words, and the most baffling,
Here the frailest leaves of me, and yet my strongest-lasting,
Here I shade down and hide my thoughts—I do not expose them,
And yet they expose me more than all my other poems."

The manliness of the emotion, which is thus so shyly, mystically indicated, appears in the magnificent address to soldiers at the close of the great war: "Over the Carnage rose Prophetic a Voice."^[70] Its tenderness emerges in the elegy on a slain comrade—:^[71]

"Vigil for boy of responding kisses (never again on earth responding),
Vigil for comrade swiftly slain—vigil I never forget, how as day brightened,
I rose from the chill ground, and folded my soldier well in his blanket,
And buried him where he fell."

Its pathos and clinging intensity transpire through the first lines of the following piece, which may have been suggested by the legends of David and Jonathan, Achilles and Patroclus, Oretes and Pylades:—^[72]

"When I pursue the conquered fame of heroes, and the victories of mighty generals,
I do not envy the generals,
Nor the president in his Presidency, nor the rich in his great house;
But when I read of the brotherhood of lovers, how it was with them,
How through life, through dangers, odium, unchanging, long and long,
Through youth, and through middle and old age, how unfaltering, how affectionate
and faithful they were,
Then I am pensive—I hastily put down the book, and walk away, filled with the
bitterest envy."

But Whitman does not conceive of comradeship as a merely personal possession, delightful to the friends it links in bonds of amity. He regards it essentially as a social and political virtue. This human emotion is destined to cement society and to render commonwealths inviolable. Reading some of his poems, we are carried back to ancient Greece—to Plato's Symposium, to Philip gazing on the Sacred Band of Thebans after the fight at Chæronea.
[73]

"I dream'd in a dream, I saw a city invincible to the attacks of the whole of the rest of the earth;
I dream'd that was the new City of Friends;
Nothing was greater there than the quality of robust love—it led the rest;
It was seen every hour in the actions of the men of that city,
And in all their looks and words."

And again:[74]

"I believe the main purport of these States is to found a superb friendship, exalté, previously unknown,
Because I perceive it waits, and has been always waiting, latent in all men."

And once again:—[75]

"Come, I will make the continent indissoluble;
I will make the most splendid race the sun ever yet shone upon;
I will make divine magnetic lands,
 With the love of comrades,
 With the life-long love of comrades.
I will plant companionship thick as trees all along the shores of America, and along the shores of the great lakes, and all over the prairies;
I will make inseparable cities, with their arms about each other's necks;
 By the love of comrades,
 By the manly love of comrades.
For you these from me, O Democracy, to serve you ma femme!
For you, for you I am thrilling these songs."

In the company of Walt Whitman we are very far away from Gibbon and Carlier, from Tardieux and Casper-Liman, from Krafft-Ebing and Ulrichs. What indeed has this "superb friendship, exalté, previously unknown," which "waits, and has been always waiting, latent in all men," that "something fierce in me, eligible to burst forth," "ethereal comradeship," "the last athletic reality"—what has all this in common with the painful topic of the preceding sections of my Essay?

It has this in common with it. Whitman recognises among the sacred emotions and social virtues, destined to regenerate political life and to cement nations, an intense, jealous, throbbing, sensitive, expectant love of man for man: a love which yearns in absence, droops under the sense of neglect, revives at the return of the beloved; a love that finds honest delight in hand-touch, meeting lips, hours of privacy, close personal contact. He proclaims this love to be not only a daily fact in the present, but also a saving and ennobling aspiration. While he expressly repudiates, disowns, and brands as "damnable" all "morbid inferences" which may be drawn by malevolence or vicious cunning from his doctrine, he is prepared to extend the gospel of comradeship to the whole human race. He expects Democracy, the new social and political medium, the new religious ideal of mankind, to develop and extend "that fervid comradeship," and by its means to counterbalance and to spiritualise what is vulgar and materialistic in the modern world. "Democracy," he maintains, "infers such loving comradeship, as its most inevitable twin or counterpart, without which it will be incomplete, in vain, and incapable of perpetuating itself."^[76]

If this be not a dream, if he is right in believing that "threads of manly friendship, fond and loving, pure and sweet, strong and life-long, carried to degrees hitherto unknown," will penetrate the organism of society, "not only giving tone to individual character, and making it unprecedentedly emotional, muscular, heroic, and refined, but having deepest relations to general politics"—then are we perhaps justified in foreseeing here the advent of an enthusiasm which shall rehabilitate those outcast instincts, by giving them a spiritual atmosphere, an environment of recognised and healthy emotions, wherein to expand at liberty and purge away the grossness and the madness of their pariahdom?

This prospect, like all ideals, until they are realised in experience, may seem fantastically visionary. Moreover, the substance of human nature is so mixed that it would perhaps be fanatical to expect from Whitman's chivalry of "adhesiveness" a more immaculate purity than was attained by the mediæval chivalry of "amateness." Still that mediæval chivalry, the great emotional product of feudalism, though it fell short of its own aspiration, bequeathed incalculable good to modern society by refining and clarifying the crudest of male appetites. In like manner, the democratic chivalry, announced by Whitman, may be destined to absorb, control, and elevate

those darker, more mysterious, apparently abnormal appetites, which we have seen to be widely diffused and ineradicable in the ground-work of human nature.

Returning from the dream, the vision of a future possibility, it will at any rate be conceded that Whitman has founded comradeship, the enthusiasm which binds man to man in fervent love, upon a natural basis. Eliminating classical associations of corruption, ignoring the perplexed questions of a guilty passion doomed by law and popular antipathy to failure, he begins anew with sound and primitive humanity. There he discovers "a superb friendship, exalté, previously unknown." He perceives that "it waits, and has been always waiting, latent in all men." His method of treatment, fearless and uncowed by any thought of evil, his touch upon the matter, chaste and wholesome and aspiring, reveal the possibility of restoring in all innocence to human life a portion of its alienated or unclaimed moral birthright. The aberrations we have been discussing in this treatise are perhaps the morbid symptoms of suppression, of hypertrophy, of ignorant misregulation, in a genuine emotion capable of being raised to good by sympathetic treatment.

It were well to close upon this note. The half, as the Greeks said, is more than the whole; and the time has not yet come to raise the question whether the love of man for man shall be elevated through a hitherto unapprehended chivalry to nobler powers, even as the barbarous love of man for woman once was. This question at the present moment is deficient in actuality. The world cannot be invited to entertain it.^[77]

IX.

EPILOGUE.

THE conclusions to which I am led by this enquiry into sexual inversion are that its several manifestations may be classified under the following categories: (1) Forced abstinence from intercourse with females, or *faute de mieux*; (2) Wantonness and curious seeking after novel pleasure; (3)

Pronounced morbidity; (4) Inborn instinctive preference for the male and indifference to the female sex; (5) Epochs of history when the habit has become established and endemic in whole nations.

Under the first category we group the phenomena presented by schools, prisons, convents, ships, garrisons in solitary stations, nomadic tribes of marauding conquerors.^[78]

To the second belong those individuals who amuse themselves with experiments in sensual pleasure, men jaded with ordinary sexual indulgence, and indifferent voluptuaries. It is possible that something morbid or abnormal usually marks this class.

To the third we assign clear cases of hereditary malady, in which a want of self-control is prominent, together with sufferers from nervous lesion, wounds, epilepsy, senile brain-softening, in so far as these physical disturbances are complicated with abnormal passions.^[79]

The fourth includes the whole class of Urnings, who have been hitherto ignored by medical investigators, and on whose numerical importance Ulrichs has perhaps laid exaggerated stress. These individuals behave precisely like persons of normal sexual proclivities, display no signs of insanity, and have no morbid constitutional diathesis to account for their peculiarity.

Under the existing conditions of European Society, these four categories exist sporadically. That is to say, the members of them are found scattered through all communities, but are nowhere recognised except by the penal code and the medical profession. In the fifth category we are brought face to face with the problem offered by ancient Hellas, by Persia, by Afghan, by the peoples of what Burton calls the Sotadic Zone. However we may account for the origin of sexual inversion, the instinct has through usage, tradition, and social toleration passed here into the nature of the race; so that the four previous categories are confounded, or, if distinguished, are only separable in the same way as the vicious and morbid affections of the ordinary sexual appetite may be differentiated from its healthier manifestations.

Returning to the first four categories, which alone have any importance for a modern European, we perceive that only one of them, the third, is positively morbid, and only one, the second, is *ipso facto* vicious. The first is immoral in the same sense as all incontinence, including self-abuse, fornication, and so forth, practised *faute de mieux*, is immoral; but it cannot be called either morbid or positively vicious, because the habit in question springs up under extra-social circumstances. The members of the fourth category are abnormal through their constitution. Whether we refer that abnormality to atavism, or to some hitherto unapprehended deviation from the rule in their sexual conformation, there is no proof that they are the subjects of disease. At the same time it is certain that they are not deliberately vicious.

The treatment of sexual inversion by society and legislation follows the view taken of its origin and nature. Ever since the age of Justinian, it has been regarded as an unqualified crime against God, the order of the world, and the State. This opinion, which has been incorporated in the codes of all the Occidental races, sprang originally from the conviction that sterile passions are injurious to the tribe by checking propagation. Religion adopted this view, and, through the legend of Sodom and Gomorrah, taught that God was ready to punish whole nations with violent destruction if they practised the "unmentionable vice." Advancing civilisation, at the same time, sought in every way to limit and regulate the sexual appetite; and while doing so, it naturally excluded those forms which were not agreeable to the majority, which possessed no obvious utility, and which *prima facie* seemed to violate the cardinal laws of human nature.

Social feeling, moulded by religion, by legislation, by civility, and by the persistent antipathies of the majority regards sexual inversion with immitigable abhorrence. It does not distinguish between the categories I have indicated, but includes all species under the common condemnation of crime.

Meanwhile, of late years, we have come to perceive that the phenomena presented by sexual inversion, cannot be so roughly dealt with. Two great nations, the French and the Italian, by the "Code Napoleon" and the "Codice Penale" of 1889, remove these phenomena from the category of crime into that of immorality at worst. That is to say, they place the intercourse of

males with males upon the same legal ground as the normal sexual relation. They punish violence, protect minors, and provide for the maintenance of public decency. Within these limitations, they recognise the right of adults to deal as they choose with their persons.

The new school of anthropologists and psychological physicians study sexual inversion partly on the lines of historical evolution, and partly from the point of view of disease. Mixing up atavism and heredity with nervous malady in the individual, they wish to substitute medical treatment for punishment, life-long sequestration in asylums for terms of imprisonment differing in duration according to the offence.

Neither society nor science entertains the notion that those instincts which the laws of France and Italy tolerate, under certain restrictions, can be simply natural in a certain percentage of male persons. Up to the present time the Urning has not been considered as a sport of nature in her attempt to differentiate the sexes. Ulrichs is the only European who has maintained this view in a long series of polemical and imperfectly scientific works. Yet facts brought daily beneath the notice of open-eyed observers prove that Ulrichs is justified in his main contention. Society lies under the spell of ancient terrorism and coagulated errors. Science is either wilfully hypocritical or radically misinformed.

Walt Whitman, in America, regards what he calls "manly love" as destined to be a leading virtue of democratic nations, and the source of a new chivalry. But he does not define what he means by "manly love." And he emphatically disavows any "morbid inferences" from his doctrine as "damnable."

This is how the matter stands now. The one thing which seems clear is that sexual inversion is no subject for legislation, and that the example of France and Italy might well be followed by other nations. The problem ought to be left to the physician, the moralist, the educator, and finally to the operation of social opinion.

X.

SUGGESTIONS ON THE SUBJECT OF SEXUAL INVERSION IN RELATION TO LAW AND EDUCATION.

I.

The laws in force against what are called unnatural offences derive from an edict of Justinian, A.D. 538. The Emperor treated these offences as criminal, on the ground that they brought plagues, famines, earthquakes, and the destruction of whole cities, together with their inhabitants, upon the nations who tolerated them.

II.

A belief that sexual inversion is a crime against God, nature, and the State pervades all subsequent legislation on the subject. This belief rests on (1) theological conceptions derived from the Scriptures; (2) a dread of decreasing the population; (3) the antipathy of the majority for the tastes of the minority; (4) the vulgar error that antiphysical desires are invariably voluntary, and the result either of inordinate lust or of satiated appetites.

III.

Scientific investigation has proved in recent years that a very large proportion of persons in whom abnormal sexual inclinations are manifested possess them from their earliest childhood, that they cannot divert them into normal channels, and that they are powerless to get rid of them. In these cases, then, legislation is interfering with the liberty of individuals, under a certain misconception regarding the nature of their offence.

IV.

Those who support the present laws are therefore bound to prove that the coercion, punishment, and defamation of such persons are justified either (1) by any injury which these persons suffer in health of body or mind, or (2) by any serious danger arising from them to the social organism.

V.

Experience, confirmed by scientific observation, proves that the temperate indulgence of abnormal sexuality is no more injurious to the individual than a similar indulgence of normal sexuality.

VI.

In the present state of over-population, it is not to be apprehended that a small minority of men exercising sterile and abnormal sexual inclinations should seriously injure society by limiting the increase of the human race.

VII.

Legislation does not interfere with various forms of sterile intercourse between men and women: (1) prostitution, (2) cohabitation in marriage during the period of pregnancy, (3) artificial precautions against impregnation, and (4) some abnormal modes of congress with the consent of the female. It is therefore in an illogical position, when it interferes with the action of those who are naturally sterile, on the ground of maintaining the numerical standard of the population.

VIII.

The danger that unnatural vices, if tolerated by the law, would increase until whole nations acquired them, does not seem to be formidable. The position of women in our civilisation renders sexual relations among us occidentals different from those of any country—ancient Greece and Rome, modern Turkey and Persia—where antiphysical habits have hitherto become endemic.

IX.

In modern France, since the promulgation of the Code Napoleon, sexual inversion has been tolerated under the same restrictions as normal sexuality. That is to say, violence and outrages to public decency are punished, and minors are protected, but adults are allowed to dispose as they like of their own persons. The experience of nearly a century shows that in France, where sexual inversion is not criminal *per se*, there has been no extension of it through society. Competent observers, like agents of police, declare that London, in spite of our penal legislation, is no less notorious for abnormal vice than Paris.

X.

Italy, by the Penal Code of 1889, adopted the principles of the Code Napoleon on this point. It would be interesting to know what led to this alteration of the Italian law. But it cannot be supposed that the results of the Code Napoleon in France were not fully considered.

XI.

The severity of the English statutes render them almost incapable of being put in force. In consequence of this the law is not unfrequently evaded, and crimes are winked at.

XII.

At the same time our laws encourage blackmailing upon false accusation; and the presumed evasion of their execution places from time to time a vile weapon in the hands of unscrupulous politicians, to attack the Government in office. Examples: the Dublin Castle Scandals of 1884, the Cleveland Street Scandals of 1889.

XIII.

Those who hold that our penal laws are required by the interests of society must turn their attention to the higher education. This still rests on the study of the Greek and Latin classics, a literature impregnated with *pæderastia*. It is carried on at public schools, where young men are kept apart from

females, and where homosexual vices are frequent. The best minds of our youth are therefore exposed to the influences of a pæderastic literature at the same time that they acquire the knowledge and experience of unnatural practices. Nor is any trouble taken to correct these adverse influences by physiological instruction in the laws of sex.

XIV.

The points suggested for consideration are whether England is still justified in restricting the freedom of adult persons, and rendering certain abnormal forms of sexuality criminal, by any real dangers to society: after it has been shown (1) that abnormal inclinations are congenital, natural, and ineradicable in a large percentage of individuals; (2) that we tolerate sterile intercourse of various types between the two sexes; (3) that our legislation has not suppressed the immorality in question; (4) that the operation of the Code Napoleon for nearly a century has not increased this immorality in France; (5) that Italy, with the experience of the Code Napoleon to guide her, adopted its principles in 1889; (6) that the English penalties are rarely inflicted to their full extent; (7) that their existence encourages blackmailing, and their non-enforcement gives occasion for base political agitation; (8) that our higher education is in open contradiction to the spirit of our laws.^[80]

FINIS.

FOOTNOTES:

[1] Vindices Flammæ.

[2] Stieber, "Practisches Lehrbuch der Criminal-Polizei," 1860, cap. 19, quoted by Ulrichs, "Araxes," p. 9. It is not necessary to multiply evidences upon a point so patent to every man of

the world. But I will nevertheless translate a striking passage from Mantegazza (*op. cit.*, p. 148). "Nor is this infamous abomination confined to the vilest classes of our society. It soars into the highest spheres of wealth and intelligence. Within the narrow range of my own experience I have known among the most scandalous sodomites a French journalist, a German poet, an Italian statesman, and a Spanish jurist; all of these men of exquisite taste and profound culture!" It would not be difficult to draw up a list of English kings, bishops, deans, nobles of the highest rank, poets, historians, dramatists, officers in the army and navy, civil servants, schoolmasters in the most fashionable schools, physicians, members of Parliament, journalists, barristers, who in their lifetime were, as Dante says, "d'un medesimo peccato al mondo lerci." Many belonging to the past are notorious; and no good could come of mentioning the names of the living.

[3] This accusation against men who feel a sexual inclination for males loses some of its significance when we consider how common the practice of *Venus aversa* is among libertines who love women. Parent-Duchatelet asserts that no prostitute after a certain age has escaped it. Coffignon, in his book on, "La Corruption à Paris" (p. 324), says: "Chaque année, il passe en traitement à l'hôpital de Lourcine une centaine de femmes sodomistes.... Je suis persuadé qu'à l'hôpital de St. Lazare la proportion des sodomistes est encore beaucoup plus grande.... Les maîtresses de maison, professant cet odieux principe que la clientèle doit être satisfaite, ne permettent pas à une fille de se refuser à une acte de sodomie." Tardieu (*Attentats, &c.*, p. 198) observes: "Chose singulière! c'est principalement des rapports conjugaux que se sont produits les faits de cette nature."

[4] See Casper-Liman, vol. i., p. 182, at the end of Case 71.

[5] While studying what Germans call the *Casuistik* of this question in medical, forensic, and anthropological works, we often meet with cases where inverted sexuality exhibits extraordinary symptoms of apparent craziness—strange partialities for particular kinds of dress, occupations in the beloved object, nastinesses, and so forth. But it must be remarked first that the same symptoms are exhibited by sexually normal natures (Krafft-Ebing, *Observations* 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, and the cases recorded in footnote to page 90); and, secondly, that if they should appear to be more frequent in the abnormal, this can in a great measure be ascribed to the fact that these latter cases only come under the observation of medical men and judges when the patients have already for many years been suffering from all the pangs of a coerced and defrauded instinct. There is nothing in the copious history of Greece and Rome upon this subject to lead us to suppose that in a society which tolerated sexual inversion, its subjects were more conspicuous for filthy and degrading or insane proclivities than ordinary men and women were. Those who can bring themselves to enquire into such matters may convince themselves by reading Forberg's annotations to "Hermaphroditus," Rosenbaum's "Lustseuche," the pseudo-Meursius, and the pornographical dialogues of Aretino. It will appear conclusively that both in ancient and in modern times the normal sexual instinct has been subject to the wildest freaks and aberrations; not in actually diseased persons, but simply in lustful wantons and the epicures of new sensations. The curious things we know about flagellation and cruelty in connection with the ordinary appetite should also be remembered. As a final note on this topic, I will refer to a passage quoted by Tarnowsky from a work of Taxil, describing a peculiarly repulsive class of fashionable libertines in Paris called "les stercoraires" (*op. cit.*, p. 70). Compare what Mantegazza reports of a "gentile ufficiale francese" (*Gli amore degli uomini*, vol. i. p. 117).

[6] See upon this point Tardieu, "Attentats aux Mœurs," Rosenbaum, "Die Lustseuche."

[7] Ancient literature abounds in prose and poetry which are both of them concerned with homosexual love. Only a portion of this can be called pornographic: among the Greeks, the Μούσα Παιδική, parts of Lucian, and occasional hints in Athenæus and Aristophanes perhaps deserve the name; among the Romans, the Priapeia, the Satyricon of Petronius, some elegies and satires, certainly do so. Italian literature can show the Rime Burlesche, Beccadelli's Hermaphroditus, the Canti Carnascialeschi, the macaronic poems of Fidentius, and the remarkably outspoken romance entitled "Alcibiade fanciullo a scolla." Balzac has treated the theme, but with reserve and delicacy. Mirabeau's "Erotika Biblion" is a kind of classic on the subject. In English literature, if we except Shakespeare's Sonnets, George Barnfield's Poems, parts of Marlowe, "Roderick Random," Churchill's Satire "The Times," homosexual passions have been rarely handled, and none of these works are pornographic. In Germany, Count von Platen, Heine's victim, was certainly an Urning; but his homosexual imitations of Persian poetry are pure, though passionate. I am not acquainted with more than the titles of some distinctly pornographic German books. The following appears to be of this sort: "Mannesliebe, oder drei Jahre aus dem Leben eines jungen Mannes."

[8] Les Deux Prostitutions, par F. Carlier, Ancien Chef du Service actif des Mœurs à la Préfecture de Police. Paris. Dentu. 1889.

[9] Paris, Brossier, 1889.

[10] In the recently published military novel "Sous Offs." (by Lucien Descaves, Paris, Tresse et Stock, 1890) some details are given regarding establishments of this nature. See pp. 322, 412, 417, for a description of the drinking-shop called "Aux Amis de l'Armée," where a few maids were kept for show, and also of its frequenters, including in particular the adjutant Laprévotte (cp. 44).

[11] On the morals of the Foreign Legions, see Ulrichs, Ara Spei, p. 20; Memnon, p. 27. Also General Brossier's report, quoted by Burton, Arabian Nights, vol. x. p. 251

[12] P. 459.

[13] Tardieu, *op. cit.*, pp. 213-255.

[14] In dealing with Tardieu, Casper-Liman, and Tarnowsky, I have directed the reader to passages in the works of the three medical authorities who have spoken most decidedly upon this topic. After comparing their evidence, the case seems to me to stand thus. Both male and female prostitutes are exposed to considerable risks of physical deformation in the exercise of their illicit trade. But males and females, if they keep their vicious propensities within the bounds of temperance, offer no physical deformations to observation. Only those men who for years have practised promiscuous prostitution earn epithets like the Greek slang εὐρύπρωκτος, or the Italian *culo rotto*.

[15] Casper-Liman, *op. cit.*, vol. i. p. 164.

[16] Casper-Liman, *op. cit.*, vol. i. pp. 174-181.

[17] *Op. cit.*, vol. i. pp. 164-166.

[18] Having criticised Tardieu for his use of the phrase *pæderast*, Casper and Liman can find no better.

[19] Westphal: Die Conträre Sexualempfindung. Archiv für Psychatrie, vol. ii. I.

[20] The Standard of Sanity, Br. Med. Journal, Nov. 28, 1885.

[21] See Tarnowsky about the opinion of the lower classes in St. Petersburg, *op. cit.*, p. 99. "Ueberhaupt verhalten sich die gemeinen ungebildeten Leute, dem Ausspruch aller mir bekannten Päderasten gemäss, äusserst nachsichtig gegen unzuchtige Anträge—'herrschaftliche Spielerei,' wie sie es nennen." This is true not only of Russia, but of countries where we should least expect to find the compliance in question.

[22] P. 73. The italics are the translator's. The adjective *homosexual*, though ill-compounded of a Greek and a Latin word, is useful, and has been adopted by medical writers on this topic. *Unisexual* would perhaps be better.

[23] A note upon this subject has to be written; and it may be introduced here as well as elsewhere. Balzac, in *Une dernière incarnation de Vautrin*, describes the morals of the French *bagnes*. Dostoieffsky, in *Prison Life in Siberia*, touches on the same topic. See his portrait of Sirotkin, p. 52, *et seq.*, p. 120 (edn. J. & R. Maxwell, London). We may compare Carlier, *op. cit.*, pp. 300, 301, for an account of the violence of homosexual passions in French prisons. The initiated are familiar with the facts in English prisons. There is a military prison on the Lido at Venice, where incorrigible lovers of their own sex, amongst other culprits, are confined. A man here said: "All our loves in this place are breech-loaders." Bouchard, in his *Confessions* (Paris, Liseux, 1881), describes the convict station at Marseilles in 1630. The men used to be allowed to bring women on board the galleys. At that epoch they "les besognoient avant tout le monde, les couchant sous le banc sur leur 'capot. Mais depuis quelques années en ca, le general a defendu entrée aux femmes. De sorte qu'il ne se pêche plus maintenant là-dedans qu'en sodomie, mollesse, irrumation, et autres pareilles tendresses" (p. 151). The same Frenchman, speaking of the Duc d'Orléans' pages at Paris, says that this was a "cour extrèmement impie et débauchée, surtout pour les garçons, M. d'Orléans deffendoit à ses pages de se besogner ni branler la pique; leur donnant au reste congé de voir les femmes tant qu'ils voudroient, et quelquefois venant de nuit heurter à la porte de leur chambre, avec cinq ou six garses, qu'il enfermoit avec eux une heure à deux" (p. 88). This prince was of the same mind as Campanella, who, in the *Città del Sole*, laid it down that young men ought to be freely admitted to women, for the avoidance of sexual aberrations. Aretino and Berni enable us to comprehend the sexual immorality of males congregated together in the courts of Roman prelates. As regards military service, the facts related by Ulrichs about the French Foreign Legion in Algeria, on the testimony of a credible witness, who had been a pathic in his regiment, deserve attention (*Ara Spei*, p. 20; *Memnon*, p. 27). This man, who was a German, told Ulrichs that the Spanish, French, and Italian soldiers were the lovers, the Swiss and German their beloved. See General Brossier, cited above, p. 19. Ulrichs reports that in the Austrian army lectures on homosexual vices are regularly given to cadets and conscripts (*Memnon*, p. 20).

[24] See above, p. 33, my criticism of Moreau upon this point, with special reference to Greece.

[25] Prometheus, pp. 20-26, *et seq.*

[26] Without having recourse to Ulrichs, it may be demonstrated from Krafft-Ebing's own cases of genuine Urnings that early onanism is by no means more frequent among them than among normal males. Five marked specimens showed no inclination for self-abuse. The first (p. 128) says: "As I never masturbated and felt no inclination for it, I sometimes had a nocturnal pollution." The second (p. 155): "You will be surprised to hear that before my twenty-eighth year I never had any ejaculation of semen, either by nocturnal emissions, or by masturbation, or by contact with a man." The third (p. 172): "Onanism is a miserable makeshift, and pernicious, whereas homosexual love elevates the moral and strengthens the

physical nature." The fourth (p. 163): "I had an internal horror of onanism, although from the very first appearance of puberty I was sensually very excitable and troubled with persistent erections." The fifth (p. 142) is not so clear; but it is obvious from his remarks that the first ejaculation of semen which happened to him did so at the sight of a handsome soldier: "feeling my parts moistened, I was horribly frightened and thought it was a hæmorrhage." Some of the cases do not mention the subject at all. A good many seem to have begun to masturbate early; but the proportion is not excessive to the whole number. One Urning explains the *faute de mieux* system (p. 115): "If we have no friend, whose sexual company has become needful to the preservation of our health, and if we abandon ourselves at last to masturbation alone with our imagination, then indeed do we become ill." Another speaks as follows (p. 151): "Homosexual indulgence with a man gave me enjoyment and a consequent feeling of well-being, whereas onanism *faute de mieux* produced an opposite result."

[27] P. 82. Herodotus called it "the female disease."

[28] P. 86, *et seq.*

[29] P. 88, *et seq.*

[30] Henceforward we may use the word Urning without apology; for however the jurists and men of science repudiate Ulrichs' doctrine, they have adopted his designation for a puzzling and still unclassified member of the human race. A Dr. Kaserer, of Vienna, is said to have invented the term Urning.

[31] This is a hit at Westphal, Krafft-Ebing's predecessor, who laid down the doctrine that Urnings are conscious of their own morbidity. Of course, both authorities are equally right. Approach an Urning with terrors of social opinion and law; and he will confess his dreadful apprehensions. Approach him from the point of view of science; and he will declare that, within four closed walls, he has no thought of guilt.

[32] Pp. 97-106.

[33] The physical repugnance of true Urnings for women may be illustrated by passages from three of Krafft-Ebing's cases (pp. 117, 123, 163), which I will translate. (1) "I had observed that a girl was madly in love with me, and longed intensely to yield herself up to me. I gave her an assignation in my house, hoping that I should succeed better with a girl who sought me out of love than I had with public women. After her first fiery caresses, I did indeed feel a little less frigid; but when it came to thinking about copulation, all was over—the same stark frost set in, and my part was played out. I sent her away, deeply excited, with some moral remarks; and I have never tried the like experiments again. On all these occasions *the specific odour of the female added to my horror.*" (2) "The proximity of wenches aroused in me qualms and nausea; *in particular I could not bear to smell them.*" (3) "It seems to me absurd to set up the female form as the prototype of human beauty. I regard a woman's person as displeasing, the formation of her hips as ugly and unæsthetic. Dancing is therefore an abomination to me. *I loathe the odour which the so-called fair sex exhales when heated by the dance.*" The disgust inspired in these three Urnings by the smell of the female is highly significant; since we know that the sense of smell acts powerfully upon the sexual appetite of normal individuals. It may be remarked that in all the instances of pronounced Urnings, sexual congress with women seems to have been followed with disgust, nervous exhaustion, and the sense of an unnatural act performed without pleasure. This is true even of those who have brought themselves to marriage.

[34] A sign, by the way, which may be observed in the most masculine of athletes. This is very noticeable in the nude photographs of Sandow.

[35] Englishmen know the type as Mariannes, and had occasion to study their habits in the Boulton and Park trial. For the type in Paris, consult Carlier, *op. cit.*, pp. 323-326, 339-351, 463.

[36] I have used the German version of Lombroso's work, because of the translator's preface and occasional annotations.

[37] See Dufour, "Histoire de la Prostitution," vol. iii. (France, ch. i.) p. 193.

[38] See Dufour, "Histoire de la Prostitution," (France, chs. 6 and 7).

[39] See above, p. 35, for an ingenious definition by Dr. Huggard, which covers both classes as born criminals and moral madmen.

[40] His German translator calls attention to this omission; p. 153 footnote.

[41] Third edition. Halle a. S., 1882.

[42] Psych. Sex., p. 82.

[43] Leipzig, Wigand, 1860.

[44] Arabian Nights, 1885, vol. x., pp. 205-254.

[45] Burton's acquaintance with what he called "le Vice" was principally confined to Oriental nations. He started on his enquiries, imbued with vulgar errors; and he never weighed the psychical theories examined by me in the foregoing section of this Essay. Nevertheless, he was led to surmise a crisis of the two sexes in persons subject to sexual inversion. Thus he came to speak of "the third sex." During conversations I had with him less than three months before his death, he told me that he had begun a general history of "le Vice"; and at my suggestion he studied Ulrichs and Krafft-Ebing. It is to be lamented that life failed before he could apply his virile and candid criticism to those theories, and compare them with the facts and observations he had independently collected.

[46] I give the author's own text, p. 206.

[47] P. 208.

[48] P. 251.

[49] P. 222.

[50] Pp. 204, 209.

[51] Gli amori degli Uomini, Milano, 1886, vol. i. cap. 5.

[52] *Ibid.*, p. 149.

[53] Pp. 148-154.

[54] P. 154.

[55] See above, p. 55, note.

[56] The notion that human beings were originally hermaphrodite is both ancient and widespread. We find it in the Book of Genesis, unless, indeed, there be a confusion here between two separate theories of creation. God is said to have first made man in his own image, male and female in one body, and to have bidden them multiply. Later on he created the woman out of part of the primitive man. The myth related by Aristophanes in Plato's *Symposium* has a curious bearing upon Ulrichs' speculations. There were originally human beings of three sexes: men, the children of the sun; women, the children of the earth; and hermaphrodites, the children of the moon. They were round, with two faces, four hands, four feet and two sets of reproductive organs apiece. In the case of the third sex, one set was male, the other female. Zeus, on account of their strength and insolence, sliced them into halves. Since that time the halves of each sort have always striven to unite with their corresponding halves, and have found some satisfaction in carnal congress—males with males, females with females, and males and females with each other: "They who are a section of the male follow the male, and while they are young, being slices of the original man, they hang about men and embrace them, and they are themselves the best of boys and youths, because they have the most manly nature. And when they reach manhood, they are lovers of youth, and are not naturally inclined to marry or beget children, which they do, if at all, only in obedience to the law, but they are satisfied if they may be allowed to live with one another unwedded; and such a nature is prone to love and ready to return love, always embracing that which is akin to him." (Symp. 191-2, Jowett's translation.) Then follows a glowing description of Greek Love, the whole reminding us very closely of the confessions made by Urnings in modern times, and preserved by medical or forensic writers on sexual inversion.

[57] Memnon, section xix.

[58] See above, p. 36, the suggestion quoted from Dr. Huggard of "a congenital lack of balance between structures themselves healthy." It might be queried whether this "imperfect sexual differentiation," or this "congenital lack of balance between structures themselves healthy," is not the result of an evolutionary process arriving through heredity and casual selection at an abnormal, but not of necessity a morbid, phenomenon in certain individuals.

[59] The first two from Casper-Liman, *Handbuch der gerichtlichen Medicin*, vol. i. pp. 166-169. The others from Krafft-Ebing, *Psychopathia Sexualis*.

[60] Memnon, section lxxiii. p. 54.

[61] Since Ulrichs left off writing, Italy (by the "Nuovo Codice Penale" of 1889) has adopted the principles of the Code Napoleon, and has placed sexual inversion under the same legal limitations as the normal sexual instinct.

[62] Dr. W. Ogle, on the 18th March, 1890, read a paper before the Statistical Society upon "Marriage Rates and Ages." The conclusion he arrived at, with regard to the rapidly-advancing over-population of England, was that, in order to equalise the death-rate with the birth-rate (or in other words, to maintain the population at its present level), we must look forward either to (1) an increase of emigration which would involve social revolution, or (2) to the advance of the average age at which women marry to the point of thirty years, or (3) to an exclusion of 45 per cent. of those who now marry from matrimony at any period of life. In the face of these calculations, after admitting their possible exaggeration, it seems illogical to punish with severe legal penalties those members of the male sex who do not want to marry, and who can satisfy their natural desires in ways which involve no detriment to the State and no violation of the rights of individuals.

[63] Psych. Sex., p. 108. I have condensed the sense of four short paragraphs, to translate which in full would have involved a disagreeable use of medical language.

[64] Psych. Sex., p. 107.

[65] Studies in Literature, p. 119.

[66] In this relation it is curious to note what one of Casper-Liman's correspondents says about the morals of North America (*op. cit.*, vol. i. p. 173). "Half a year after my return I went to North America, to try my fortune. There the unnatural vice in question is more ordinary than it is here; and I was able to indulge my passions with less fear of punishment or persecution. The American's tastes in this matter resemble my own; and I discovered, in the United States, that I was always immediately recognised as a member of the confraternity." The date of this man's visit to America was the year 1871-72. He had just returned from serving as a volunteer in the great Franco-German war of 1870-71.

[67] Not included in the "Complete Poems and Prose." It will be found in "Leaves of Grass," Boston, 1860-1861.

[68] The two last are from "Drum-Taps."

[69] This I cannot find in "Complete Poems and Prose." It is included in the Boston edition, 1860-61, and the Camden edition, 1876.

[70] "Drum-Taps." Complete Poems, p. 247.

[71] *Ibid.*, p. 238.

[72] "Leaves of Grass." Complete Poems, p. 107.

[73] Complete Poems, p. 109. Compare, "I hear it was charged against me," *ibid.*, p. 107.

[74] Complete Poems, p. 110.

[75] Camden edition, 1876, p. 127. Complete Poems, p. 99. Compare "Democratic Vistas," Complete Prose, p. 247, note.

[76] These prose passages are taken from "Democratic Vistas," cited above, p. 119, note.

[77] While these sheets were going through the press, I communicated Whitman's reply to a judicious friend, whose remarks upon it express my own opinion more clearly and succinctly than I have done above: "I do not feel that this answer throws light on the really interesting question; does the sentiment of 'Calamus' represent, in its own way, the ideal which we should aim at impressing on passionate affections between men, as certainly liable to take other objectionable forms? Is there sufficient affinity between the actual and the ideal for this to be practicable? That is what I have never felt sure about when we have discussed these matters. But I do not feel that my doubts have been resolved in any negative direction by Walt Whitman."

[78] Kelts, Scythians, Dorians, Tartars, Normans.

[79] It ought to be borne in mind that they are by no means invariably complicated with abnormal sexuality, but quite as often with normal sexuality in some extravagant shape, as well as with other kinds of moral aberration.

[80] It may not be superfluous to recapitulate the main points of English legislation on this topic. (1) Sodomy is a felony, defined as the carnal knowledge (per anum) of any man or of any woman by a male person; punishable with penal servitude for life as a maximum, for ten years as a minimum. (2) The attempt to commit sodomy is punishable with ten years' penal servitude as a maximum. (3) The commission, in public or private, by any male person with another male person, of "any act of gross indecency," is punishable with two years' imprisonment and hard labour."

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